

RCVD - USDC - CHAS, SC
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IN THE UNITED STATES DISTRICT COURT
 DISTRICT OF SOUTH CAROLINA
 CHARLESTON DIVISION

DEBRA NELSON	)	
	)	
Plaintiff,	)	C.A. No.: 2:25-CV-00405-RMG-MGB
	)	
v.	)	
	)	
Curtiss Wright Electro Mechanical Corp.	)	
d/b/a Curtiss-Wright Steam and Air Solutions	)	
STEPHANIE LANIER, and	)	
SHANE SABLITSKY,	)	
	)	
Defendants.	)	

PLAINTIFF'S JUDICIAL RECUSAL MOTION

Plaintiff, Debra Nelson, respectfully moves this Court for the recusal of Judge Richard M. Gergel and Magistrate Judge Mary Gordon Baker pursuant to 28 U.S.C. § 455(a) and § 455(b)(1). As set forth below, the conduct, rulings, procedural irregularities, and post-October 7 case handling create an undeniable appearance of bias and a serious risk of actual prejudice, requiring recusal and reassignment to a neutral Article III judge.

SECTION 1 — PRELIMINARY STATEMENT

Plaintiff respectfully moves for the immediate recusal of Judge Richard M. Gergel and Magistrate Judge Mary Gordon Baker pursuant to 28 U.S.C. § 455(a), § 455(b)(1), and the Court's inherent authority. Since the unexplained judicial reassignment on October 7, 2025, this case has been marked by a pattern of irregular rulings, missing filings, contradictory orders, blocked evidence, and clear judicial acceptance of defense counsel's false statements — creating an unmistakable appearance of bias and partiality.

What has occurred since October 7 is not normal judicial fluctuation, nor is it a disagreement on legal interpretation; it is an unmistakable and escalating pattern of judicial hostility, unfairness, and irregular case handling that a reasonable observer would view as biased. Prior orders issued by Judge Cherry authorizing discovery were quietly reversed without evidentiary review. Material evidence submitted by Plaintiff — including a flash drive supporting her claims — was ignored. Plaintiff's filings were accepted by the Clerk, stamped

received, and then **never docketed**, only to later reappear in judicial rulings as though they had been properly filed. These procedural abnormalities benefit only one side: the Defendants.

Meanwhile, Defendants' misrepresentations, defamatory accusations, procedural violations, and discovery obstruction have been repeatedly credited without scrutiny, while Plaintiff has been reprimanded, restricted, or outright blocked at every turn. This is not impartial adjudication; it is a litigation environment rendered fundamentally unfair.

Under § 455(a), recusal is required when a judge's conduct creates even the **appearance** of partiality. Here, the appearance is overwhelming. A neutral observer reviewing the post-October 7 docket would conclude that the Court has aligned itself with Defendants, tolerated and adopted their false factual assertions, ignored Plaintiff's evidence, and permitted procedural irregularities that destroyed Plaintiff's ability to litigate fairly.

Accordingly, Plaintiff seeks recusal of both presiding judges and reassignment to a neutral Article III judge not previously involved in the matter.

SECTION 2 — LEGAL STANDARD FOR RECUSAL

Judicial recusal is governed by 28 U.S.C. § 455(a) and § 455(b)(1). Section 455(a) mandates recusal where a judge's impartiality "might reasonably be questioned." The standard is not what the judge believes internally, nor what the opposing party claims, but what a **reasonable, informed observer** would conclude based on the judge's conduct. See *Liljeberg v. Health Servs. Acquisition Corp.*, 486 U.S. 847, 860–61 (1988). Where judicial conduct gives rise to even the *appearance* of bias or partiality, recusal is required to protect public confidence in the courts.

Section 455(b)(1) requires recusal where a judge has demonstrated "personal bias or prejudice" or personal knowledge of disputed evidentiary facts. Courts have repeatedly held that judicial actions reflecting hostility, consistent one-sided rulings, unexplained procedural deviations, or acceptance of one party's version of disputed facts without evidentiary basis can constitute grounds for recusal. See *United States v. DeTemple*, 162 F.3d 279, 286 (4th Cir. 1998) ("Bias may be inferred from judicial conduct.").

The Supreme Court has made clear that due process is violated where judicial behavior creates a “serious risk of actual bias.” *Caperton v. A.T. Massey Coal Co., Inc.*, 556 U.S. 868, 883–84 (2009). Even without explicit evidence of subjective bias, the Constitution forbids proceedings conducted under circumstances that would lead a neutral observer to question the judge’s fairness.

Judicial impartiality also requires consistency, transparency, and procedural regularity. When a court’s actions create irregularities—such as missing docket entries, contradictory orders, unexplained reversals of prior judicial findings, or disregard of key evidence—recusal becomes necessary to ensure the legitimacy of judicial proceedings. Courts have invoked recusal where “procedural anomalies” create a perception of unfairness. See *In re Kensington Int’l Ltd.*, 368 F.3d 289, 303–04 (3d Cir. 2004).

Moreover, a judge’s acceptance of **false factual assertions** by one party, refusal to review evidence submitted by the opposing party, and repeated adverse rulings unsupported by the record constitute a sufficient basis for recusal. See *United States v. Heldt*, 668 F.2d 1238, 1271 (D.C. Cir. 1981) (recusal warranted where judge “repeatedly credited one side’s allegations despite contradictory evidence”).

The law does not require proof of actual corruption, explicit statements of bias, or direct evidence of prejudice. Section 455(a) is intentionally broad and focuses on the **appearance of impartiality**, not its internal reality. Where the pattern of rulings, procedural handling, or treatment of the parties creates an objectively reasonable question about fairness, recusal is mandatory.

SECTION 3 — PROCEDURAL AND FACTUAL GROUNDS FOR RECUSAL

Plaintiff respectfully submits that the conduct of District Judge Richard M. Gergel and Magistrate Judge Mary Gordon Baker demonstrates a pattern of partiality, hostility, and procedural irregularities that would cause any reasonable observer to question the fairness of these proceedings. The following facts—taken together and viewed objectively—establish a clear appearance of bias under 28 U.S.C. § 455(a) and § 455(b)(1), and demonstrate a serious risk of actual prejudice in violation of due process.

A. The October 7 Reassignment Triggered Immediate and Unexplained Deviations From Prior Judicial Handling

On October 7, 2025, this case was reassigned without explanation. Immediately following reassignment, the Court began issuing rulings inconsistent with both the factual record and Judge Cherry's prior judicial determinations. Under Judge Cherry, the case proceeded with procedural transparency, consistent application of rules, and judicial review of evidence—including the flash drive Plaintiff submitted to the Clerk. After reassignment, Plaintiff encountered:

- unexplained reversals of prior rulings;
- abrupt restrictions on discovery;
- judicial acceptance of defense misstatements;
- suppression or non-docketing of Plaintiff's filings; and
- rulings that exclusively benefited Defendants while harming Plaintiff.

The timing and pattern of these deviations create the clear appearance that the reassignment marked a shift toward judicial hostility and partiality against Plaintiff.

B. Plaintiff's Filings Were Stamped as Received but Never Docketed — Then Used Against Her

One of the most disturbing procedural anomalies concerns Plaintiff's November 6, 2025 Objections to Magistrate Judge Baker's orders. Plaintiff filed these objections with the Clerk and received an official stamped copy confirming receipt. Yet the objections **never appeared on the public docket**. To the date of this motion the filing still does not appear on the docket.

Despite this, Judge Gergel referenced Plaintiff's missing objections in a November 24 order, proving the filing existed internally but was not visible to the parties or the public.

Defendants then used the Court's failure to docket Plaintiff's filing to falsely argue that her objections were "untimely."

This sequence is not a clerical mistake — it is a **procedural failure** that deprived Plaintiff of the ability to obtain timely review under Rule 72(a). It also gave Defendants a litigation advantage. Courts confronted with missing filings typically investigate irregularities; here, the issue was ignored, and the Court proceeded as though the record were complete. This

would cause any reasonable observer to question the fairness and impartiality of the proceedings.

C. Judge Gergel's Treatment of Plaintiff's Missing Filing Demonstrates Partiality and a Denial of Due Process

One of the most egregious procedural anomalies occurred when Judge Gergel issued a November 24 order expressly referencing Plaintiff's November 6, 2025 Objections—despite the fact that those Objections never appeared on the public docket. Instead of addressing the missing docket entry, investigating why Plaintiff's filing was not posted, or directing the Clerk to correct the record, Judge Gergel issued a scheduling order granting Defendants additional time to respond to a filing that Plaintiff herself had no access to.

This created an impossible situation: the Court internally acknowledged Plaintiff's Objection while Plaintiff was denied the ability to view or rely on her own submission. Even more troubling, Defendants filed a Response to these Objections, demonstrating that they somehow received access to a filing that was not on the docket. See Defendants' **Response to Plaintiff's Objection** (ECF No. 229).

Judicial Recusal Motion

There is no neutral or lawful mechanism by which defense counsel could have received and responded to a non-docketed filing unless the Court or Clerk provided it internally. Yet Plaintiff—the author of the Objection—was not provided a copy or a docket entry. This is not a mutual error; it is a selective irregularity that benefitted Defendants alone and materially disadvantaged Plaintiff.

A reasonable observer would conclude that the Court took steps to ensure Defendants had access to Plaintiff's Objection while refusing to ensure Plaintiff had the same access to her own filing. The Court's refusal to address the missing entry, coupled with granting Defendants additional time to respond, amplifies the appearance of judicial bias and violates the fundamental requirement that "justice must satisfy the appearance of justice." *Liljeberg*, 486 U.S. at 860.

Plaintiff directly served Defendants' counsel with the November 6, 2025 filings via email the same day they were submitted to the Clerk. Defense received the filings and acknowledged them by responding on the merits. See Plaintiff's November 6, 2025 email to Defense counsel attaching the Objections and related filings (**Exhibit D**).

Defendants' receipt and review of these filings confirm that they were timely, properly served, and fully available to Defendants. Therefore, any assertion by Defense that the filings were "untimely," "not filed," or "procedurally improper" is contradicted by their own conduct. The only party denied access to the filings was Plaintiff—because the docket failed to display them—creating a direct due process violation and further evidence of the appearance of judicial bias.

The only party who did not have access to Plaintiff's filings was Plaintiff herself, because the filings never appeared on the docket. Defendants had them. The Court had them. Only Plaintiff was deprived of access. It is therefore logically and legally impossible for Defendants to assert that the filings were untimely when Plaintiff served them on the same day they were submitted and Defendants clearly received and responded to them.

D. Plaintiff Has Been Emotionally and Procedurally Harmed by the Court's Handling of Her Filing

The Court's actions have caused Plaintiff to feel victimized not only by Defendants but by the judicial system itself. Plaintiff timely filed her Objections, received a stamped copy verifying receipt, and relied on the Court to docket them. Instead, the filing disappeared from the public record. Plaintiff then watched Defendants respond to the missing filing and the Court issue orders referencing it—while she herself had no access to it.

This sequence left Plaintiff unprotected, unheard, and forced to litigate with an incomplete docket. The Court's failure to correct or even acknowledge this error stripped Plaintiff of confidence in judicial neutrality and created the unmistakable appearance of structural bias. Under § 455(a), recusal is mandatory where the Court's actions cause a reasonable observer to question impartiality. Here, the prejudice and appearance of bias are undeniable.

E. Judge Baker Reversed Judge Cherry's Lawful Authorization of the Hunt Law Subpoena Without Reviewing the Evidence

Judge Cherry authorized the subpoena to Hunt Law LLC after reviewing the evidence submitted by Plaintiff on a flash drive documenting cyber intrusion, attorney interference, and related misconduct. Judge Cherry's authorization was based on review of the evidence and the relevance of Hunt's communications to Plaintiff's claims.

After the October 7 reassignment, Judge Baker reversed this prior authorization — without explanation, without reviewing the flash drive, and without reconciling her ruling with Judge Cherry’s findings. This reversal deprived Plaintiff of highly relevant, non-privileged evidence and directly benefitted Defendants by shielding potential evidence of attorney involvement or misconduct.

A judicial officer may not disregard prior court findings or block previously approved discovery without factual or legal basis. Doing so creates an appearance that the reversal was motivated by bias rather than judicial reasoning.

F. The Court Ignored Flash-Drive Evidence While Accepting Defense Counsel’s False Statements About It

Plaintiff voluntarily submitted a flash drive to the Clerk containing time-stamped video evidence corroborating her claims of cyber intrusion and interference. Judge Cherry reviewed this evidence. Judge Baker never did. Instead, defense counsel falsely accused Plaintiff of “refusing to produce” the flash drive — a demonstrably false assertion contradicted by the docket stamp and Clerk records.

Despite being aware that Plaintiff *submitted* the flash drive, Judge Baker did not correct the false allegation, did not review the evidence, and did not instruct Defendants to withdraw their false statements. Nor did Judge Gergel.

When a court ignores exculpatory evidence while simultaneously accepting false hostile statements from one party, the appearance of bias is unavoidable.

As will be confirmed by the October 28, 2025 deposition transcript (to be filed as Exhibit L), Plaintiff testified under oath that she created the video strictly for her personal safety due to physical surveillance, cyber intrusion, and an incident involving an unknown male and female coming to her front door. Defense counsel acknowledged this explanation, asked questions about it, and therefore knew that the video was neither work-related nor relevant to any of Defendants’ defenses. Despite this knowledge, Defense later told the Court that Plaintiff “refused” to produce a “relevant” workplace video—a statement demonstrated to be false on the face of the deposition record.

G. Defense Counsel Interfered With Plaintiff's Comparator Witness, and the Court Took No Action

Defense counsel T. Chase Samples improperly contacted Plaintiff's Rule 45 subpoenaed witness, **Brian Fogarty — Plaintiff's key comparator witness**. Fogarty had direct knowledge of comparator treatment, safety issues, and workplace misconduct. He was subpoenaed properly and never filed an objection.

Instead, Samples communicated with Fogarty ex parte, obtained his alleged medical information, and inserted himself between Plaintiff and her witness. Fogarty's alleged "unavailability" was communicated **only** by Samples. Plaintiff received no documentation, no objection, and no notice from Fogarty himself.

Interference with a subpoenaed comparator witness is a serious violation. Yet the Court did not express concern, did not question defense counsel, and did not protect Plaintiff's right to compulsory process.

A reasonable observer would conclude that the Court tolerated and implicitly ratified defense obstruction.

H. Judicial Rulings Have Consistently Accepted Defense Counsel's False and Defamatory Assertions

Defendants made numerous false statements, including that Plaintiff fabricated conspiracy theories, withheld evidence, or failed to comply with discovery. These statements were made **without evidentiary basis** and contradicted by the flash drive, email correspondence, and Clerk-stamped filings.

Yet the Court repeatedly incorporated or referenced defense narratives while ignoring Plaintiff's contradictory evidence. This one-sided acceptance of false assertions is a classic indicator of judicial partiality. See Heldt, 668 F.2d at 1271.

When a court repeatedly adopts a party's false statements while disregarding the opposing party's evidence, it undermines confidence in impartiality.

Defendants' counsel has adopted a recurring pattern of injecting irrelevant personal litigation history, misrepresenting procedural facts, and asserting claims that are contradicted by the record. Their November 26 Response continues this pattern by referencing unrelated lawsuits in an effort to prejudice the Court, despite such references having no relevance under Rule

401 and being prohibited under Rule 403 as improper character evidence. This tactic mirrors counsel's broader practice of making factual assertions that are later demonstrated to be false—such as claiming Plaintiff failed to include Schedule A when she personally delivered it to the Secretary of State, or asserting that Plaintiff “refused” to produce a video that counsel already had access to and had discussed with Plaintiff at the October 28 deposition. The Court's acceptance of these false and irrelevant representations has significantly contributed to the appearance of bias warranting recusal under 28 U.S.C. § 455(a).

Defendants also ignore the fact that many of Plaintiff's filings were necessitated by her responsibility to enforce numerous third-party subpoenas across multiple jurisdictions, to respond to corporate counsel for entities such as Apple, Microsoft, Google, Verizon, Motorola, Honda, and others, and to address repeated instances of noncompliance. Plaintiff was required to interact with UIDDA processes, secretaries of state, federal clerks, and opposing counsel across several states because Defendants themselves refused to produce relevant digital evidence and forced Plaintiff to obtain it directly from third parties. Each subpoena generated its own set of correspondence, compliance issues, extensions, and motions to enforce. Plaintiff did not choose this complexity—Defendants' obstruction and failure to comply with discovery obligations created it. Accordingly, the number of filings in this case is not evidence of abuse, but rather a direct reflection of Defendants' persistent refusal to participate in discovery in good faith.

I. The Pattern of Rulings Unequivocally Shows Systematic Favoritism Toward Defendants

Since October 7, the rulings in this case have followed a uniform pattern:

- Rulings that benefit Defendants are granted without evidentiary review.
- Rulings that prejudice Plaintiff are issued suddenly, often without explanation.
- Defense misrepresentations are accepted as fact.
- Plaintiff's evidence is ignored or minimized.
- Prior judicial approvals (such as the Hunt subpoena) are reversed without justification.
- Missing docket entries are disregarded despite prejudice to Plaintiff.
- Defense counsel's misconduct is tolerated.
- Plaintiff's legitimate motions are denied or delayed.

The cumulative pattern is unmistakable. These are not routine disagreements. These are not innocent errors. They are repeated actions that consistently benefit one side and harm the other.

A reasonable observer would conclude that the bench has developed an adverse predisposition against Plaintiff, thereby requiring recusal.

The procedural irregularities in this case, coupled with the Court's repeated acceptance of Defense counsel's knowingly false statements, have transformed these proceedings into something unrecognizable as a fair judicial process. What has occurred here does not reflect inadvertence or oversight—it reflects a system functioning without the basic safeguards of transparency, neutrality, or accuracy. When judges rely on filings that the Plaintiff cannot access, when Defense counsel's falsehoods are credited over Plaintiff's documentary evidence, and when Plaintiff's rights are disregarded at every stage, the integrity of the federal judiciary is compromised. This is unacceptable, contrary to the rule of law, and incompatible with the due process guaranteed to every litigant.

J. The Court's Delayed Visibility of ECF 219, Combined With Its Failure to Rule on Plaintiff's 11/6 and 11/14 Motions, Confirms Selective Docketing and Ongoing Prejudice

Plaintiff's November 6 Objections were stamped as received by the Clerk and later internally entered as **ECF 219 on November 14, 2025**. However, **ECF 219 did not appear on Plaintiff's public docket at the time it was filed**, nor at any point when the Court and third-party counsel were already relying on it. Plaintiff filed a **Notice of Undocketed Filing (ECF 218)** on November 14 to alert the Court to the missing entry, but even that Notice did not display the attached November 6 filing on the docket.

Despite the filing being invisible to Plaintiff, **Apple and Defendants already had access to it**. Apple's November 25 Motion for Extension of Time (ECF 226) expressly references **"Plaintiff's Objections (ECF No. 219)"** and identifies them as filed on November 14 and entered on November 17. Plaintiff never served Apple with the filing. Apple could only have obtained the Objections from the Court, confirming that the Court **internally circulated Plaintiff's filing to third-party counsel while withholding it from Plaintiff**.

Judge Gergel also referenced Plaintiff's Objections in his November 24 Order — at a time when Plaintiff could not view ECF 219 and did not know it had been entered. Defendants likewise filed responses to the Objections even though Plaintiff had no docketed version of her own filing.

ECF 219 only became visible to Plaintiff **after she filed formal complaints and repeatedly alerted the Court**. The belated visibility does not cure the procedural prejudice. The harm occurred during the period when:

1. The Court relied on ECF 219.
2. Defendants relied on ECF 219.
3. Apple relied on ECF 219.
4. Plaintiff was denied access to ECF 219.

Equally troubling, the Court **still has not ruled** on Plaintiff's November 6 or November 14 motions, despite ruling promptly on Apple's November 25 motion within six days. Plaintiff's motions remain pending, ignored, and unaddressed while the Court has taken immediate action on filings submitted by Defendants and third-party corporate entities.

This selective judicial responsiveness — acting swiftly on Apple's requests while refusing to rule on Plaintiff's motions — demonstrates ongoing procedural bias. A reasonable observer would conclude that the Court is intentionally avoiding Plaintiff's filings because addressing them would expose the underlying docket manipulation and procedural irregularities.

The combination of:

- delayed and concealed docket entries,
- internal circulation of Plaintiff's filings to other parties while withholding them from Plaintiff, and
- the Court's continuing refusal to rule on Plaintiff's motions creates an unmistakable appearance of partiality requiring recusal under 28 U.S.C. § 455(a).

SECTION 4 — APPLICATION OF LAW TO THE FACTS: RECUSAL IS MANDATORY UNDER § 455(a) AND § 455(b)(1)

The factual record in this case demonstrates a clear, consistent, and escalating pattern of conduct by Judge Gergel and Judge Baker that would cause any reasonable member of the

public to question their impartiality. Under 28 U.S.C. § 455(a), this alone mandates recusal. The analysis under § 455(a) is **objective**, focusing not on a judge's personal belief but on the perception of a neutral observer. *Liljeberg*, 486 U.S. at 861. Applying that standard here, the appearance of bias is unmistakable.

A. The Post–October 7 Pattern of One-Sided Rulings Creates an Unavoidable Appearance of Bias

The sudden shift in judicial treatment after the October 7 reassignment — including contradictory rulings, unexplained reversals of previously approved discovery, and a pattern of decisions that uniformly disadvantage Plaintiff — fits squarely within the type of judicial behavior requiring recusal. See *In re Kensington Int'l Ltd.*, 368 F.3d at 303–04.

Judges are not permitted to issue rulings that:

- reverse prior judicial approvals without explanation,
- disregard evidence previously reviewed by the Court,
- adopt one party's factual narrative without examination, or
- consistently resolve all doubts in favor of one litigant.

When this pattern emerges, the appearance of partiality becomes unavoidable. A reasonable observer reviewing the post-October 7 docket would conclude that judicial neutrality has been compromised.

B. Acceptance of Defense Counsel's False Statements While Ignoring Plaintiff's Evidence Shows Judicial Alignment With One Party

Courts have held that crediting one party's factual assertions while ignoring contradictory evidence from the opposing party can constitute grounds for recusal. *Heldt*, 668 F.2d at 1271. That is precisely what has occurred here.

Defense counsel made multiple false statements — including denying the existence of subpoena schedules, misrepresenting deposition events, and falsely accusing Plaintiff of withholding the flash drive she herself submitted to the Court. Despite possessing the contradictory evidence, the Court did not correct the falsehoods, and subsequent orders reflected acceptance of the defense narrative.

No reasonable observer could conclude that this is neutral judicial behavior. Instead, the Court's consistent acceptance of false allegations against Plaintiff, and its refusal to consider evidence undermining those allegations, creates the appearance of a judicial predisposition against her.

C. The Court's Tolerance of Defense Counsel's Interference With Plaintiff's Comparator Witness Demonstrates Partiality

Defense counsel's unauthorized contact with Plaintiff's Rule 45 comparator witness, Brian Fogarty, is an egregious act of obstruction. Fogarty was subpoenaed, critical to Plaintiff's case, and never objected. Defense counsel intervened, spoke to the witness, and then became the sole source of information about his alleged unavailability (**Exhibit N**).

The Court took no action.

A neutral court would have immediately:

- questioned defense counsel's conduct,
- protected Plaintiff's subpoena rights,
- required documentation from the witness, and
- ensured that comparator evidence was preserved.

The Court did none of this. Instead, the interference was effectively ratified through silence. This judicial inaction communicates to any reasonable observer that one party — Defendants — is being granted permission to obstruct evidence without consequence.

Such tolerance of misconduct by one side is incompatible with impartiality.

D. The Failure to Address or Correct Missing Docket Entries Demonstrates Structural Bias and Violates Due Process

Few situations undermine judicial integrity more severely than missing filings. Plaintiff's November 6 objections were stamped "received" but not docketed. Judge Gergel referenced them as if they existed on the docket. Defendants weaponized the missing entry to falsely attack Plaintiff as untimely.

A neutral court would have:

- halted proceedings,
- corrected the docket,
- restored the missing filings,
- addressed the resulting prejudice.

Instead:

- the missing entry was ignored,
- defense counsel's exploitation of the missing filing was accepted, and
- no corrective action was taken.

This is not a clerical slip — it is a **systemic failure that prejudiced only one party**, and the Court allowed it to stand. Under § 455(a), this alone creates a constitutionally unacceptable appearance of unfairness.

E. Judge Baker's Reversal of Judge Cherry's Decision Without Reviewing the Evidence Violates § 455(b)(1)

Judge Cherry reviewed Plaintiff's flash-drive evidence before approving the Hunt Law subpoena. Judge Baker reversed that approval **without reviewing the evidence**, and without any reasoned explanation (**Exhibit F**). Courts have consistently held that when a judge disregards established factual findings or refuses to review evidence relevant to their ruling, the judge has effectively acquired "personal knowledge of disputed evidentiary facts" or demonstrated prejudgment — both grounds for mandatory recusal under § 455(b)(1).

The unquestioned reversal of a prior judicial determination, made without evidence review and in a manner that benefits only Defendants, strongly suggests that the outcome was predetermined and not based on neutral adjudication.

F. The Combined Irregularities Create a "Serious Risk of Actual Bias" Under Caperton

The Supreme Court in Caperton held that due process is violated where circumstances create a serious risk of actual bias, even without proof of subjective prejudice. Here, the record shows:

- missing filings;

- contradictory rulings;
- judicial disregard of Plaintiff's evidence;
- improper reliance on defense falsehoods;
- tolerance of defense witness interference;
- unexplained departure from prior judicial handling;
- a pattern of adverse rulings exclusively against Plaintiff.

This cumulative pattern satisfies the Caperton standard: the objective risk of bias is so substantial that continued participation by Judges Gergel and Baker would violate Plaintiff's constitutional right to an impartial tribunal.

G. Recusal Is the Only Remedy That Can Restore Confidence in These Proceedings

The integrity of judicial proceedings requires that justice be done and be *seen* to be done. Given the extensive record of irregularities, contradictions, non-docketed filings, and tolerance of defense misconduct, no reasonable observer could retain confidence in the impartiality of the current judges.

Recusal and reassignment to a neutral Article III judge is not merely appropriate — it is **mandatory** under § 455(a) and § 455(b)(1). Without recusal, the legitimacy of all future proceedings is compromised.

SECTION 5 — RELIEF REQUESTED

For the reasons set forth above, Plaintiff respectfully submits that recusal of District Judge Richard M. Gergel and Magistrate Judge Mary Gordon Baker is not only warranted, but required, under 28 U.S.C. § 455(a), § 455(b)(1), and the Due Process Clause of the Fifth Amendment. The cumulative procedural irregularities, failure to address missing filings, disregard of Plaintiff's evidence, tolerance of defense misconduct, and pattern of one-sided rulings have created an undeniable appearance of bias and a serious risk of actual prejudice.

The integrity of these proceedings has been fundamentally compromised, and continued adjudication by the current judicial officers cannot restore confidence in the fairness of this

litigation. Recusal is the only remedy capable of protecting Plaintiff's constitutional rights and ensuring that this case proceeds before a neutral and impartial tribunal.

Accordingly, Plaintiff respectfully requests that the Court enter an Order providing the following relief:

1. **Recusal of District Judge Richard M. Gergel** from further involvement in this matter pursuant to 28 U.S.C. § 455(a) and § 455(b)(1).
2. **Recusal of Magistrate Judge Mary Gordon Baker** from further involvement in this matter pursuant to 28 U.S.C. § 455(a) and § 455(b)(1).
3. **Immediate reassignment of this case** to a neutral Article III judge who has had no prior connection to the parties, the issues, or the disputed rulings at issue in this motion.
4. **Review and correction** of all missing or undocketed filings — including Plaintiff's November 6, 2025 Objections — and a full review of all motions Plaintiff filed that remain unrul ed upon. Several of Plaintiff's motions have been properly filed, stamped, and served, yet remain unaddressed or absent from the docket entirely. These omissions have materially prejudiced Plaintiff and must be corrected immediately upon reassignment.
5. **Confirmation that all future rulings** will be made de novo by the reassigned judge on issues impacted by the disputed rulings of Judge Gergel and Judge Baker, including matters involving discovery, subpoenas, missing evidence, and docket irregularities.
6. **Any additional relief** the reassigned judge deems necessary to restore confidence in the fairness and integrity of these proceedings.

Given the extensive record demonstrating the appearance and risk of bias — and the critical importance of judicial neutrality — Plaintiff respectfully requests that this motion be granted in full.

Respectfully submitted December 2, 2025,


Debra Nelson

EXHIBIT A

The following transaction was entered on 11/24/2025 at 1:07 PM EST and filed on 11/24/2025

Case Name: Nelson v. Curtis-Wright Corporation et al

Case Number: 2:25-cv-00405-RMG-MGB

Filer:

Document Number: 222(No document attached)

Docket Text:

TEXT ORDER: Plaintiff has filed objections to two discovery orders of the Magistrate Judge (Dkt. Nos. 192 and 194), which was entered on the docket on October 14, 2025. (Dkt. No. 219). Pursuant to Fed. R. Civ. P. 72(b)(2), Defendants may file responses to the objections within 14 days after the objections were entered on the docket or the date in which Plaintiff served Defendants with the objections, whichever is soonest. Plaintiff may file a reply to any response of the Defendants within 7 days thereafter. AND IT IS SO ORDERED. Entered at the direction of the Honorable Richard M Gergel on 11/24/2025. (ltap,)

2:25-cv-00405-RMG-MGB Notice has been electronically mailed to:

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2:25-cv-00405-RMG-MGB Notice will not be electronically mailed to:

Debra Nelson
2718 Crestline Drive
North Charleston, SC 29405

EXHIBIT B

IN THE UNITED STATES DISTRICT COURT
DISTRICT OF SOUTH CAROLINA
CHARLESTON DIVISION

DEBRA NELSON

Plaintiff,

Y.

**Curtiss Wright Electro Mechanical Corp.
d/b/a Curtiss-Wright Steam and Air Solutions
STEPHANIE LANIER, and
SHANE SABLITSKY,**

Defendants.

C.A. No.: 2:25-CV-00405-RMG-MGB

62-1080-646, 647, 648, 649, 650, 651, 652, 653, 654, 655, 656, 657, 658, 659, 660, 661, 662, 663, 664, 665, 666, 667, 668, 669, 670, 671, 672, 673, 674, 675, 676, 677, 678, 679, 680, 681, 682, 683, 684, 685, 686, 687, 688, 689, 690, 691, 692, 693, 694, 695, 696, 697, 698, 699, 700, 701, 702, 703, 704, 705, 706, 707, 708, 709, 710, 711, 712, 713, 714, 715, 716, 717, 718, 719, 720, 721, 722, 723, 724, 725, 726, 727, 728, 729, 730, 731, 732, 733, 734, 735, 736, 737, 738, 739, 740, 741, 742, 743, 744, 745, 746, 747, 748, 749, 750, 751, 752, 753, 754, 755, 756, 757, 758, 759, 760, 761, 762, 763, 764, 765, 766, 767, 768, 769, 770, 771, 772, 773, 774, 775, 776, 777, 778, 779, 780, 781, 782, 783, 784, 785, 786, 787, 788, 789, 790, 791, 792, 793, 794, 795, 796, 797, 798, 799, 800, 801, 802, 803, 804, 805, 806, 807, 808, 809, 810, 811, 812, 813, 814, 815, 816, 817, 818, 819, 820, 821, 822, 823, 824, 825, 826, 827, 828, 829, 830, 831, 832, 833, 834, 835, 836, 837, 838, 839, 840, 841, 842, 843, 844, 845, 846, 847, 848, 849, 850, 851, 852, 853, 854, 855, 856, 857, 858, 859, 860, 861, 862, 863, 864, 865, 866, 867, 868, 869, 870, 871, 872, 873, 874, 875, 876, 877, 878, 879, 880, 881, 882, 883, 884, 885, 886, 887, 888, 889, 890, 891, 892, 893, 894, 895, 896, 897, 898, 899, 900, 901, 902, 903, 904, 905, 906, 907, 908, 909, 910, 911, 912, 913, 914, 915, 916, 917, 918, 919, 920, 921, 922, 923, 924, 925, 926, 927, 928, 929, 930, 931, 932, 933, 934, 935, 936, 937, 938, 939, 940, 941, 942, 943, 944, 945, 946, 947, 948, 949, 950, 951, 952, 953, 954, 955, 956, 957, 958, 959, 960, 961, 962, 963, 964, 965, 966, 967, 968, 969, 970, 971, 972, 973, 974, 975, 976, 977, 978, 979, 980, 981, 982, 983, 984, 985, 986, 987, 988, 989, 990, 991, 992, 993, 994, 995, 996, 997, 998, 999, 1000, 1001, 1002, 1003, 1004, 1005, 1006, 1007, 1008, 1009, 1010, 1011, 1012, 1013, 1014, 1015, 1016, 1017, 1018, 1019, 1020, 1021, 1022, 1023, 1024, 1025, 1026, 1027, 1028, 1029, 1030, 1031, 1032, 1033, 1034, 1035, 1036, 1037, 1038, 1039, 1040, 1041, 1042, 1043, 1044, 1045, 1046, 1047, 1048, 1049, 1050, 1051, 1052, 1053, 1054, 1055, 1056, 1057, 1058, 1059, 1060, 1061, 1062, 1063, 1064, 1065, 1066, 1067, 1068, 1069, 1070, 1071, 1072, 1073, 1074, 1075, 1076, 1077, 1078, 1079, 1080, 1081, 1082, 1083, 1084, 1085, 1086, 1087, 1088, 1089, 1090, 1091, 1092, 1093, 1094, 1095, 1096, 1097, 1098, 1099, 1100, 1101, 1102, 1103, 1104, 1105, 1106, 1107, 1108, 1109, 1110, 1111, 1112, 1113, 1114, 1115, 1116, 1117, 1118, 1119, 1120, 1121, 1122, 1123, 1124, 1125, 1126, 1127, 1128, 1129, 1130, 1131, 1132, 1133, 1134, 1135, 1136, 1137, 1138, 1139, 1140, 1141, 1142, 1143, 1144, 1145, 1146, 1147, 1148, 1149, 1150, 1151, 1152, 1153, 1154, 1155, 1156, 1157, 1158, 1159, 1160, 1161, 1162, 1163, 1164, 1165, 1166, 1167, 1168, 1169, 1170, 1171, 1172, 1173, 1174, 1175, 1176, 1177, 1178, 1179, 1180, 1181, 1182, 1183, 1184, 1185, 1186, 1187, 1188, 1189, 1190, 1191, 1192, 1193, 1194, 1195, 1196, 1197, 1198, 1199, 1200, 1201, 1202, 1203, 1204, 1205, 1206, 1207, 1208, 1209, 1210, 1211, 1212, 1213, 1214, 1215, 1216, 1217, 1218, 1219, 1220, 1221, 1222, 1223, 1224, 1225, 1226, 1227, 1228, 1229, 1230, 1231, 1232, 1233, 1234, 1235, 1236, 1237, 1238, 1239, 1240, 1241, 1242, 1243, 1244, 1245, 1246, 1247, 1248, 1249, 1250, 1251, 1252, 1253, 1254, 1255, 1256, 1257, 1258, 1259, 1260, 1261, 1262, 1263, 1264, 1265, 1266, 1267, 1268, 1269, 1270, 1271, 1272, 1273, 1274, 1275, 1276, 1277, 1278, 1279, 1280, 1281, 1282, 1283, 1284, 1285, 1286, 1287, 1288, 1289, 1290, 1291, 1292, 1293, 1294, 1295, 1296, 1297, 1298, 1299, 1300, 1301, 1302, 1303, 1304, 1305, 1306, 1307, 1308, 1309, 1310, 1311, 1312, 1313, 1314, 1315, 1316, 1317, 1318, 1319, 1320, 1321, 1322, 1323, 1324, 1325, 1326, 1327, 1328, 1329, 1330, 1331, 1332, 1333, 1334, 1335, 1336, 1337, 1338, 1339, 1340, 1341, 1342, 1343, 1344, 1345, 1346, 1347, 1348, 1349, 1350, 1351, 1352, 1353, 1354, 1355, 1356, 1357, 1358, 1359, 1360, 1361, 1362, 1363, 1364, 1365, 1366, 1367, 1368, 1369, 1370, 1371, 1372, 1373, 1374, 1375, 1376, 1377, 1378, 1379, 1380, 1381, 1382, 1383, 1384, 1385,

**PLAINTIFF'S OBJECTIONS TO MAGISTRATE JUDGE'S ORDERS (ECF NOS. 192
& 194)**

ADDRESSED TO THE HONORABLE RICHARD M. GERGEL PURSUANT TO
FED. R. CIV. P. 72(a)

I. INTRODUCTION

Plaintiff Debra Nelson, appearing pro se, respectfully submits these objections to two orders entered by Magistrate Judge Mary Gordon Baker:

(1) the **October 20, 2025 Order (ECF No. 192)** denying Plaintiff's Motion to Compel and Motion to Strike related to the subpoena issued to nonparty **Hunt Law LLC**, and

(2) the **October 21, 2025 Order (ECF No. 194)** denying Plaintiff's Motions to Compel Apple Inc. and granting Apple's Motion for Protective Order.

Both rulings are **clearly erroneous and contrary to law** under Fed. R. Civ. P. 72(a) because they misrepresent the procedural record, contradict **Judge Molly H. Cherry’s prior discovery authorizations**, and improperly restrict Plaintiff’s lawful access to evidence central to her claims.

EXHIBIT B

Case No. 2:25-CV-00405-RMG-MGB

II. BACKGROUND**A. The Hunt Law LLC Subpoena (Order ECF 192)**

On or about **September 25, 2025**, Plaintiff submitted a proposed subpoena to Hunt Law LLC seeking non-privileged records showing any financial or communication link between Curtiss-Wright, its counsel, and Plaintiff's former attorney.

The subpoena was held under **judicial review for nine days**, during which time **Judge Cherry's case manager confirmed that "the Judge has to review it before it can be signed."**

Following that review, the Clerk **issued and mailed the subpoena**, bearing the Court's signature and official caption. Plaintiff filed **Notices of Service** on October 8 and 9, 2025 (ECF Nos. 164 & 171).

Judge Baker's subsequent statement that "this Court did not expressly approve the subpoena" is **factually inaccurate and contradicted by the record and Court process**. The subpoena's issuance followed a judicial authorization step, not a self-issued filing.

B. Apple Protective Order (Order ECF 194)

Plaintiff's subpoena to Apple Inc. sought **device-level technical logs and access records** relevant to claims of cyber intrusion and unauthorized monitoring. Apple produced limited materials and moved for a **Protective Order**.

Without conducting an evidentiary hearing or requiring a specific showing of "good cause" under **Rule 26(c)**, Judge Baker **granted Apple's motion and prohibited Plaintiff from issuing additional discovery requests to Apple**.

This order conflicts with Judge Cherry's prior authorization for third-party subpoenas, exceeds the narrow protections permitted under Rule 26, and effectively blocks access to critical electronic evidence necessary to prove Plaintiff's claims of stalking, retaliation, and data compromise.

EXHIBIT B

Case No. 2:25-CV-00405-RMG-MGB

III. STANDARD OF REVIEW

Under **Fed. R. Civ. P. 72(a)**, a district judge must “modify or set aside any part of a magistrate judge’s order that is clearly erroneous or contrary to law.” A finding is clearly erroneous when, although there is evidence to support it, the reviewing court is left with the definite and firm conviction that a mistake has been committed. *United States v. U.S. Gypsum Co.*, 333 U.S. 364 (1948).

IV. ARGUMENT**A. Judge Baker’s Finding That the Court Did Not Approve the Hunt Law Subpoena Is Clearly Erroneous**

The docket, issuance timeline, and direct statement from the case manager confirm that the subpoena was reviewed and approved by Judge Cherry prior to issuance.

Because the Clerk cannot issue a Rule 45 subpoena for a pro se party without judicial review, Judge Baker’s later finding is demonstrably false and unsupported by any evidence.

B. The Hunt Law Order Improperly Reverses Prior Judicial Authorization

Judge Cherry’s standing order permitting Plaintiff to issue third-party subpoenas remains in effect. Judge Baker’s order, which denies the validity of that authorization without notice or findings, constitutes a **de facto reversal of a judicial act** and is contrary to established law governing magistrate review.

C. The Apple Protective Order Lacks Good Cause and Violates Rule 26(c)

Rule 26(c)(1) allows a protective order only for “good cause” shown, and requires the movant to demonstrate specific prejudice or harm. Apple presented no affidavit, evidence, or argument of undue burden beyond general inconvenience.

Plaintiff’s discovery requests were narrowly tailored to her Apple ID and specific device logs within relevant timeframes. The magistrate’s conclusion that Apple “fully complied” and that

EXHIBIT B

Case No. 2:25-CV-00405-RMG-MGB

further discovery constituted “undue burden” is unsupported and contrary to Fourth Circuit precedent.

By prohibiting Plaintiff from issuing *any* further discovery to Apple, the Order imposes an overbroad restriction inconsistent with Rule 45(d)(3)(A) and **Virginia Dep’t of Corr. v. Jordan**, 921 F.3d 180, 189 (4th Cir. 2019).

D. Both Orders Deny Plaintiff Access to Material Evidence and Prejudice Her Case

Plaintiff’s case involves claims of electronic interference, retaliation, and unauthorized access to private data. Limiting subpoenas to former counsel and Apple effectively prevents Plaintiff from obtaining the very records that could corroborate these allegations.

Such blanket restrictions deprive Plaintiff of due process and the right to obtain relevant, non-privileged discovery in support of her claims.

V. RELIEF REQUESTED

For these reasons, Plaintiff respectfully requests that the Honorable **Richard M. Gergel**:

1. **Vacate or modify** Magistrate Judge Baker’s Orders dated October 20 and 21, 2025 (ECF Nos. 192 & 194);
2. **Reinstate Judge Cherry’s authorization** allowing Plaintiff to issue third-party subpoenas under Rule 45;
3. **Vacate or lift the Protective Order** granted to Apple Inc. and permit continued discovery limited to relevant technical data and device-access logs;
4. Direct that future discovery disputes be reviewed by the District Judge or reassigned to ensure continuity and fairness; and
5. Grant such further relief as the Court deems just and proper.

Respectfully submitted 6th of November, 2025,


Debra Nelson

EXHIBIT B

Case No. 2:25-CV-00405-RMG-MGB

Plaintiff, Pro Se
2718 Crestline Drive
North Charleston, SC 29405
nelsondebra62@gmail.com
843-277-4142 | 843-813-1335

CERTIFICATE OF SERVICE

I hereby certify that on this 6th day of November, 2025, I served a true and correct copy of the foregoing **Plaintiff's Objection to Magistrate Judge's Orders (ECF NOS. 192 & 194)** by email addressed to:

T. Chase Samples, Esq.
chase.samples@jacksonlewis.com
Joseph V. Valenza, Esq.
joseph.valenza@jacksonlewis.com

Respectfully submitted 6th of November, 2025,


Debra Nelson
Plaintiff, Pro Se



EXHIBIT D

RCVD - USDC - CHAS, SC
2025 NOV 14 PM 1:20

IN THE UNITED STATES DISTRICT COURT
DISTRICT OF SOUTH CAROLINA
CHARLESTON DIVISION

DEBRA NELSON

Plaintiff,

v.

Curtiss Wright Electro Mechanical Corp.
d/b/a Curtiss-Wright Steam and Air Solutions
STEPHANIE LANIER, and
SHANE SABLITSKY,

Defendants.

C.A. No.: 2:25-CV-00405-RMG-MGB

**PLAINTIFF'S NOTICE REGARDING UNDOCKETED FILING SUBMITTED ON
NOVEMBER 6, 2025**

Plaintiff Debra Nelson, appearing pro se, respectfully submits this Notice to advise the Court of the following:

1. On November 6, 2025, Plaintiff submitted for filing "Plaintiff's Objections to Magistrate Judge's Orders (ECF Nos. 192 & 194)", addressed to the Honorable Richard M. Gergel pursuant to Fed. R. Civ. P. 72(a).
2. The Clerk's Office accepted the filing and returned to Plaintiff a stamped copy reflecting the November 6, 2025 filing date.
3. As of the date of this Notice, the Objections do not appear on the docket, and Plaintiff has not received a deficiency notice or any communication indicating the filing was rejected or requires correction.
4. Plaintiff files this Notice to preserve the record, clarify that the Objections were timely submitted and accepted by the Clerk, and to request that the Court take notice of the pending docketing issue.

A copy of the stamped filing is attached hereto for the Court's reference.

Respectfully submitted 14th of November, 2025,

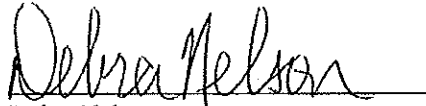

Debra Nelson
Plaintiff, Pro Se
2718 Crestline Drive
North Charleston, SC 29405
nelsondebra62@gmail.com
843-277-4142 | 843-813-1335

EXHIBIT D

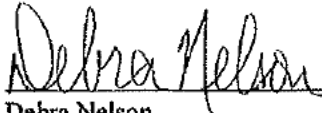
Case No. 2:25-CV-00405-RMG-MGB

CERTIFICATE OF SERVICE

I hereby certify that on this 14th day of November, 2025, I served a true and correct copy of the foregoing **Plaintiff's Notice Regarding Undocketed Filing Submitted on November 6, 2025** by email addressed to:

T. Chase Samples, Esq.
chase.samples@jacksonlewis.com
Joseph V. Valenza, Esq.
joseph.valenza@jacksonlewis.com
Jackson Lewis P.C.
15 South Main Street, Suite 700
Greenville, SC 29601

Respectfully submitted 14th of November, 2025,



Debra Nelson
Pro Se Plaintiff



RCVD - USDC - CHAS, SC
2025 NOV 14 PM1:20

Both rulings are clearly erroneous and contrary to law under Fed. R. Civ. P. 72(a) because they misrepresent the procedural record, contradict Judge Molly H. Cherry's prior discovery authorizations, and improperly restrict Plaintiff's lawful access to evidence central to her claims.

EXHIBIT D

Case No. 2:25-CV-00405-RMG-MGB

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The subpoena was held under **judicial review for nine days**, during which time **Judge Cherry's case manager confirmed that "the Judge has to review it before it can be signed."**

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Without conducting an evidentiary hearing or requiring a specific showing of "good cause" under **Rule 26(c)**, Judge Baker granted Apple's motion and **prohibited Plaintiff from issuing additional discovery requests to Apple**.

This order conflicts with Judge Cherry's prior authorization for third-party subpoenas, exceeds the narrow protections permitted under Rule 26, and effectively blocks access to critical electronic evidence necessary to prove Plaintiff's claims of stalking, retaliation, and data compromise.

EXHIBIT D

Case No. 2:25-CV-00405-RMG-MGB

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The docket, issuance timeline, and direct statement from the case manager confirm that the subpoena was reviewed and approved by Judge Cherry prior to issuance.

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Judge Cherry’s standing order permitting Plaintiff to issue third-party subpoenas remains in effect. Judge Baker’s order, which denies the validity of that authorization without notice or findings, constitutes a *de facto* reversal of a judicial act and is contrary to established law governing magistrate review.

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EXHIBIT D

Case No. 2:25-CV-00405-RMG-MGB

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By prohibiting Plaintiff from issuing *any* further discovery to Apple, the Order imposes an overbroad restriction inconsistent with Rule 45(d)(3)(A) and *Virginia Dep’t of Corr. v. Jordan*, 921 F.3d 180, 189 (4th Cir. 2019).

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Such blanket restrictions deprive Plaintiff of due process and the right to obtain relevant, non-privileged discovery in support of her claims.

V. RELIEF REQUESTED

For these reasons, Plaintiff respectfully requests that the Honorable **Richard M. Gergel**:

1. **Vacate or modify** Magistrate Judge Baker’s Orders dated October 20 and 21, 2025 (ECF Nos. 192 & 194);
2. **Reinstate** Judge Cherry’s authorization allowing Plaintiff to issue third-party subpoenas under Rule 45;
3. **Vacate or lift the Protective Order** granted to Apple Inc. and permit continued discovery limited to relevant technical data and device-access logs;
4. Direct that future discovery disputes be reviewed by the District Judge or reassigned to ensure continuity and fairness; and
5. Grant such further relief as the Court deems just and proper.

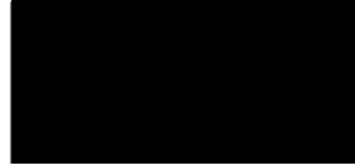
Respectfully submitted 6th of November, 2025,


Debra Nelson

EXHIBIT D

Case No. 2:25-CV-00405-RMG-MGB

Plaintiff, Pro Se

**CERTIFICATE OF SERVICE**

I hereby certify that on this 6th day of November, 2025, I served a true and correct copy of the foregoing Plaintiff's Objection to Magistrate Judge's Orders (ECF NOS. 192 & 194) by email addressed to:

T. Chase Samples, Esq.

chase.samples@jacksonlewis.com

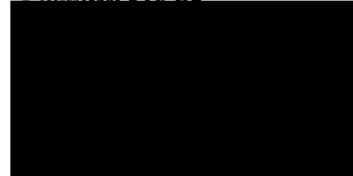
Joseph V. Valenza, Esq.

joseph.valenza@jacksonlewis.com

Respectfully submitted 6th of November, 2025,

Debra Nelson

Plaintiff, Pro Se



RCVD - USDC - CHAS, SC
2025 NOV 14 PM 1:20

EXHIBIT E

2:25-cv-00405-RMG-MGB

Date Filed 11/25/25

Entry Number 226

Page 1 of 3

**UNITED STATES DISTRICT COURT FOR THE
DISTRICT OF SOUTH CAROLINA
CHARLETON DIVISION**

Debra Nelson,**Plaintiff,****v.****Curtiss Wright Electro Mechanical Corp.
d/b/a Curtiss-Wright Steam and Air
Solutions, Stephanie Lanier, and Shane
Sablotsky,****Defendants.****Case No. 2:25-cv-00405-RMG-MGB**

**NON-PARTY APPLE INC.'S MOTION
FOR EXTENSION OF TIME**

Third-Party Apple Inc. ("Apple"), by and through undersigned counsel, respectfully requests a ten (10) day extension of the deadline set to file its Response to Plaintiffs Objections (ECF No. 219) filed on November 14, 2025.

The Text Order dated November 24, 2025, states Defendants may file responses to the objections within 14 days after Plaintiffs Objections were entered on the docket. Though the Objections were filed November 14, 2025, they were entered on the docket on November 17, 2025. Therefore, the current deadline is December 1, 2025. Non-Party Apple, Inc. asks the Court to extend the deadline to December 8, 2025, to respond to Plaintiffs' Objections. Granting this extension would not affect other deadlines in this litigation and would not prejudice any party.

Apple makes this Motion based on attorney and client availability during the Thanksgiving holiday week. In particular, Apple is under a company-wide shut down until December 1, 2025, the date of the current deadline.

For the reasons set forth herein, Apple respectfully requests that the deadline to respond to Plaintiff's Objections (ECF No. 219) be extended by seven (7) days, resulting in a new

EXHIBIT E

2:25-cv-00405-RMG-MGB

Date Filed 11/25/25

Entry Number 226

Page 2 of 3

deadline of December 8, 2025.

Respectfully submitted,

s/ Robert Wehrman

Brian C. Duffy (Fed ID No. 9491)

Robert Wehrman (Fed ID No. 13426)

Duffy & Young LLC

96 Broad Street

Charleston, SC 29401

T: (843) 720-2044

bduffy@duffyandyoung.com

rwehrman@duffyandyoung.com

Nury Siekkinen (pro hac vice)

ZWILLGEN PLLC

1900 M Street, NW, Suite 250

Washington, DC 20036

Telephone: (202) 296-3585

nury@zwillgen.com

Attorneys for Non-Party

Apple Inc.

November 25, 2025

Charleston, South Carolina

EXHIBIT E

2:25-cv-00405-RMG-MGB

Date Filed 11/25/25

Entry Number 226

Page 3 of 3

CERTIFICATE OF SERVICE

I hereby certify that a copy of **Non-Party Apple Inc.'s Motion for Extension of Time** was served upon Plaintiff by United States mail at the address below.

Debra Nelson
2718 Crestline Drive
North Charleston, SC 29405

Plaintiff

Dated: November 25, 2025.

/s/ Robert Wehrman
DUFFY & YOUNG, LLC

EXHIBIT F

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF SOUTH CAROLINA
CHARLESTON DIVISION**

DEBRA NELSON,

Plaintiff,

v.

CURTISS WRIGHT ELECTRO
MECHANICAL CORP. d/b/a Curtiss-
Wright Steam and Air Solutions,
STEPHANIE LANIER, and SHANE
SABLOTSKY,

Defendants.

Case No. 2:25-cv-00405-RMG-MGB

ORDER

Plaintiff, through counsel, initially filed this employment discrimination action in state court. (Dkt. No. 1-1.) Defendants removed the case to this Court on January 21, 2025. (Dkt. No. 1.) Shortly thereafter, Plaintiff's counsel withdrew. (Dkt. Nos. 10, 11, 12, 13, 19.) Plaintiff is now proceeding *pro se*.

This case was automatically referred to the undersigned United States Magistrate Judge for all pretrial proceedings pursuant to the provisions of 28 U.S.C. ' 636(b)(1)(A) and (B) and Local Rule 73.02(B)(2)(g), D.S.C. Currently before the Court are various discovery motions filed by Plaintiff, including a Motion to Compel (Dkt. No. 105) and Motion to Strike (Dkt. No. 176). For the reasons set forth below, Plaintiff's Motions (Dkt. Nos. 105, 176) are **DENIED**.

DISCUSSION

Plaintiff filed the instant Motion to Compel on September 16, 2025. (Dkt. No. 105.) In her Motion, Plaintiff requests an Order from the Court: (1) compelling Defendants to respond to her discovery requests, (2) enforcing a nonparty subpoena directed to her former attorney, Bonnie

EXHIBIT F

Hunt of Hunt Law LLC, and (3) allowing Plaintiff to conduct a “narrowly tailored Rule 34(a)(2) inspection of [Defendant Curtiss Wright’s] premises. (*Id.* at 1.) More specifically, Plaintiff takes issue with Defendants’ purported failure to produce a “timekeeping audit trail . . . showing who altered Plaintiff’s hours, when, and why,” and claims that Defendants’ response to two of her Requests for Production are insufficient because Defendants aver that no responsive documents exist, which Plaintiff believes is untrue. (*See generally id.*) Plaintiff also appears to contend that Defendants and/or Defense counsel “compensated her former attorney.” (*Id.* at 2.) Thus, Plaintiff requests that the Court enforce the nonparty subpoena she directed to her former attorney so she may prove “bias/collusion.” (*Id.*)

In response, Defendants argue that Plaintiff’s Motion to Compel should be denied for several reasons. (Dkt. No. 133.) First, Defendants contend that they properly responded to Plaintiff’s discovery requests and, in any event, Plaintiff’s Motion to Compel is premature because the discovery responses she seeks were not yet due at the time Plaintiff filed her Motion. (*Id.* at 2–4.) Second, Defendants contend that Plaintiff never requested a Rule 34 inspection and has no legitimate basis upon which to do so. (*Id.* at 4–5.) Third, Defendants contend that Plaintiff failed to confer with Defense counsel prior to filing her Motion. (*Id.* at 5–6.) In reply, Plaintiff admits that she filed her Motion to Compel (Dkt. No. 105) before sending a formal meet and confer letter to Defense counsel but nonetheless reiterates her request that the Court compel Defendants to supplement their discovery responses and “permit a limited-scope Rule 34 inspection of their premises.” (Dkt. No. 139 at 3.) Upon review, Plaintiff’s Motion to Compel (Dkt. No. 105) must be **DENIED**.

At the outset, Plaintiff admits that she filed her Motion prior to conferring, or attempting to confer in good faith, with Defense counsel. (Dkt. No. 139 at 3.) Accordingly, Plaintiff did not

EXHIBIT F

comply with Federal Rule of Civil Procedure 37(a)(1) and her Motion to Compel could be denied on this basis, alone. *See Anderson v. Amazon.com Servs., LLC*, No. 4:23-CV-115-D, 2025 WL 1287984, at *8 (E.D.N.C. May 2, 2025) (“This court has the discretion to deny a motion to compel for failing to meet the requirements of Fed. R. Civ. P. 37(a)(1) . . .”).

Further, as Defendants correctly note, Plaintiff seeks to compel information that does not exist and/or information that was not yet due at the time she filed her Motion. (Dkt. No. 133 at 2.) With respect to Plaintiff’s claim that Defendants must produce “the timekeeping audit trail and associated metadata,” the record confirms that Plaintiff did not submit this request to Defendants until her Third Requests for Production, which she served on September 16, 2025, the same day she filed the instant Motion. (Dkt. Nos. 105-1, 133-1.) Thus, Plaintiff’s Motion to Compel (Dkt. No. 105) is **DENIED** as premature to the extent it requests an Order compelling production of the aforementioned “timekeeping audit trail and associated metadata.”

Plaintiff’s remaining qualms with Defendants’ discovery responses ask the Court to compel Defendants to produce information that is either already in Plaintiff’s possession or does not exist. As this Court has previously informed Plaintiff, it cannot compel Defendants to furnish information they do not possess. *See, e.g., Moore v. BPS Direct, LLC*, No. 2:17-CV-3228-RMG, 2019 WL 2912490, at *2 (D.S.C. July 8, 2019) (“It is axiomatic that a party cannot be ordered to produce documents that do not exist.”); *Jackson v. Wade*, No. 1:20-CV-114 (LMB/IDD), 2021 WL 1536578, at *5 (E.D. Va. Apr. 19, 2021), *appeal dismissed*, 2021 WL 5447601 (4th Cir. Nov. 22, 2021) (“[A] subpoena can only direct an individual or entity to produce materials in their ‘possession, custody, or control,’ and thus cannot compel an entity to create a new document . . . out of whole cloth.”). This portion of Plaintiff’s Motion to Compel (Dkt. No. 105) is therefore **DENIED**.

EXHIBIT F

Turning to Plaintiff's request that the Court permit her to inspect Defendants' premises, this request must also be **DENIED**. Pursuant to Federal Rule of Civil Procedure 26, "[p]arties may obtain discovery regarding any nonprivileged matter that is relevant to any party's claim or defense and proportional to the needs of the case" The Court must consider "whether the burden or expense of the proposed discovery outweighs its likely benefit" when resolving discovery disputes. *Id.* Here, the undersigned agrees with Defendants that the requested inspection is "unlikely to lead to the discovery of admissible evidence." (Dkt. No. 133 at 4.) Plaintiff seems to believe that the requested inspection of Defendant Curtiss Wright's premises will allow her to inspect the area in which she used to work, as well as "printers/equipment tied to access issues; time-clock/clock-in stations relevant to Sept. 2023." (Dkt. No. 105 at 3.) However, she fails to explain how this inspection will assist her in proving her claims and/or why she cannot obtain the information she seeks through Interrogatories and Requests for Production.¹ (*See generally* Dkt. No. 105.) Given that Plaintiff's claims stem from events occurring more than two years ago, the undersigned expects that an inspection of Defendant Curtiss Wright's present-day premises will prove less than helpful. What is more, the requested inspection would impose a significant burden on Defendant Curtiss Wright's operations. As such, Plaintiff's request for inspection must be **DENIED**.

Plaintiff's attempt for the Court to enforce a nonparty subpoena directed to Plaintiff's prior counsel must similarly be **DENIED**. Plaintiff's Motion to Compel (Dkt. No. 105) offers limited

¹ In fact, Plaintiff seems to suggest that the inspection is only necessary if "Defendants fail to produce the timekeeping audit logs and complete HR/disciplinary files identified . . . or if the production reveals gaps that require physical verification." (Dkt. No. 105 at 4.)

EXHIBIT F

information about this subpoena, but a review of the docket, (Dkt. Nos. 164, 171, 172), and Plaintiff's Motion to Strike, (Dkt. No. 176), provides additional context.

The record reflects that Plaintiff has filed two "Notices of Service of Subpoena" with the Court—one on October 8, 2025 and one on October 9, 2025—which both pertain to the same nonparty subpoena seeking "non-privileged communications and financial records reflecting contacts or payments between Curtiss-Wright (including its outside counsel) and Hunt/Hunt Law concerning Plaintiff." (Dkt. Nos. 164, 171.) Plaintiff appears to have "served" the subpoena at issue on Hunt Law LLC via the South Carolina Secretary of State. (Dkt. Nos. 164, 171.) On October 9, 2025, Andrew Countryman of Countryman Law Firm filed an objection to Plaintiff's Notices of Service on behalf of Bonnie Hunt and Hunt Law LLC, explaining that the subpoena at issue was not validly served, and that the materials requested by Plaintiff are irrelevant. (Dkt. No. 172.)

In the Motion to Strike Plaintiff filed on October 14, 2025, she asks that the Court "strike the October 9, 2025 filing by non-party counsel." (Dkt. No. 176 at 1.) Plaintiff contends that the subpoena at issue was "expressly approved by this Court," and that she is entitled to a "Protective Order directing that Mr. Countryman and Hunt Law, LLC shall make no further filings in this action without first obtaining leave of Court, except where responding to a direct Court order or subpoena." (*Id.* at 4.) Plaintiff further requests that the Court "[a]ffirm" that her subpoena service to the South Carolina Secretary of State—as opposed to service upon Bonnie Hunt as the registered agent for Hunt Law, LLC—was "completed in good faith and consistent with the Court's prior order." (*Id.*)

Upon review, the undersigned finds no basis on which to grant Plaintiff's Motion.

EXHIBIT F

Critically, this Court did not “expressly approve” the nonparty subpoena at issue here. (See Dkt. No. 73.) Plaintiff’s claims to the contrary are plainly incorrect. (See Dkt. Nos. 73, 105, 176.)

In addition, Federal Rule of Civil Procedure 45 imposes stricter limitations on discovery sought from nonparties. Indeed, “[a] more demanding variant of the proportionality analysis [] applies when determining whether, under Rule 45, a subpoena issued against a nonparty ‘subjects a person to undue burden’ and must be quashed or modified.” *Virginia Dep’t of Corr. v. Jordan*, 921 F.3d 180, 189 (4th Cir. 2019) (quoting Fed. R. Civ. P. 45(d)(3)(A)(iv)). Ultimately, giving the nonparty status “special weight,” a court must determine “whether the benefits of discovery to the requesting party outweigh the burdens on the recipient.” *Id.*; *Spring v. Bd. of Trustees of Cape Fear Cmty. Coll.*, No. 7:15-CV-84-BO, 2016 WL 4204153, at *1 (E.D.N.C. Aug. 8, 2016). Here, it does not. In fact, the “non-privileged communications” between Bonnie Hunt and/or Hunt Law LLC and Defendants and/or Defense counsel appear to have absolutely no bearing on the claims set forth in Plaintiff’s Fourth Amended Complaint.² (See generally Dkt. Nos. 79, 105, 164, 171, 172, 176, 178.) What is more, Plaintiff has failed to demonstrate why she cannot obtain the requested materials from Defendants. (See generally Dkt. Nos. 105, 176.)³

Further, Plaintiff’s request for a protective order prohibiting attorneys Countryman and Hunt from submitting additional filings with the Court simply lacks merit. Not only does this request misconstrue Federal Rule of Civil Procedure 26(c), but the record clearly indicates that the only filings submitted by Countryman on behalf of Hunt pertain to the Notices of Service of Subpoena Plaintiff filed involving Bonnie Hunt and Hunt Law LLC. (See generally Dkt. Nos. 172,

² It is worth noting that Plaintiff was provided a copy of her casefile when Bonnie Hunt withdrew as counsel for Plaintiff. (Dkt. No. 172 at 1.)

³ Because the information requested in the subpoena at issue is irrelevant to Plaintiff’s claims, whether the subpoena was validly served is immaterial and the undersigned need not address this argument; Plaintiff’s requests to enforce the subpoena are **DENIED**, regardless.

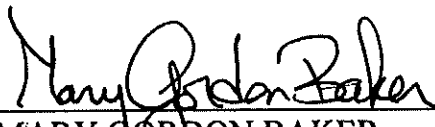
EXHIBIT F

179.) Accordingly, Plaintiff's Motion (Dkt. No. 176) is **DENIED IN FULL**.

CONCLUSION

For the foregoing reasons, Plaintiff's Motion to Compel (Dkt. No. 105) and Motion to Strike (Dkt. No. 176) are **DENIED**.

IT IS SO ORDERED.



MARY GORDON BAKER
UNITED STATES MAGISTRATE JUDGE

October 20, 2025
Charleston, South Carolina

EXHIBIT G

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF SOUTH CAROLINA
CHARLESTON DIVISION**

DEBRA NELSON,

Plaintiff,

v.

CURTISS WRIGHT ELECTRO
MECHANICAL CORP. d/b/a Curtiss-
Wright Steam and Air Solutions,
STEPHANIE LANIER, and SHANE
SABLOTSKY,

Defendants.

Case No. 2:25-cv-00405-RMG-MGB

ORDER

Plaintiff, through counsel, initially filed this employment discrimination action in state court. (Dkt. No. 1-1.) Defendants removed the case to this Court on January 21, 2025. (Dkt. No. 1.) Shortly thereafter, Plaintiff's counsel withdrew. (Dkt. Nos. 10, 11, 12, 13, 19.) Plaintiff is now proceeding *pro se*.

This case was automatically referred to the undersigned United States Magistrate Judge for all pretrial proceedings pursuant to the provisions of 28 U.S.C. ' 636(b)(1)(A) and (B) and Local Rule 73.02(B)(2)(g), D.S.C. Currently before the Court are various discovery motions, including a Motion to Compel (Dkt. No. 103) and Renewed Motion to Compel (Dkt. No. 173) filed by Plaintiff, and a Motion for Protective Order filed by nonparty Apple Inc. ("Apple") (Dkt. No. 129). For the reasons set forth below, the undersigned **DENIES** Plaintiff's Motions to Compel (Dkt. Nos. 103, 173) and **GRANTS** Apple's Motion for Protective Order (Dkt. No. 129).

EXHIBIT G**DISCUSSION**

Plaintiff filed the first Motion to Compel at issue (Dkt. No. 103) on September 12, 2025, and the second Motion to Compel at issue (Dkt. No. 173) on October 10, 2025. Both Motions pertain to an August 29, 2025 subpoena directed to Apple in which Plaintiff requested that Apple produce “account and device-level technical logs relevant to Plaintiff’s claims of cyber intrusion and unauthorized access.” (*See generally* Dkt. Nos. 103, 173.) More specifically, the subpoena requested “[f]or the time period of August 1, 2023, to the present,” the following information pertaining to Plaintiff’s Apple ID and telephone numbers:

1. All logs, technical reports, and records of unauthorized or remote access to Plaintiff’s Apple devices (including iPhones, iPads, and MacBooks) . . .
2. All logs of Personal Identification Number (PIN) unlock attempts, system overrides, and remote activations or commands sent to the devices.
3. Complete documentation of any and all agreements, policies, or procedures with government agencies or third parties that permit or facilitate access to device firmware or user data
4. All logs of system-wake or power-on events that occurred without direct user interaction or scheduled automated tasks.
5. All records of any “Find My” or similar location-tracking services being activated or accessed remotely

(Dkt. No. 103-1 at 3.)

Plaintiff’s first Motion to Compel asks the Court to compel Apple to comply with the subpoena, to “produce all documents and electronically stored information” requested, and to “[o]rder Apple to preserve all responsive logs and records pending production.” (Dkt. No. 103 at 2; *see also* Dkt. No. 115.) Plaintiff’s Renewed Motion to Compel asks the Court to “order [Apple] to produce all documents and electronically stored information responsive to Plaintiff’s subpoena, including records and logs dated after August 27, 2023, particularly those surrounding [a] September 10, 2025 incident.” (Dkt. No. 173 at 3.) Plaintiff’s Renewed Motion to Compel also asks the Court to “[r]equire Apple to certify that all responsive materials have been produced,” and

EXHIBIT G

to “[a]ward Plaintiff reasonable expenses and costs incurred in making this motion” (*Id.*) At the outset, the undersigned notes that Plaintiff filed her first Motion to Compel before

Apple’s response to the August 29, 2025 subpoena was due. (*See generally* Dkt. Nos. 103, 128, 128-1.) Plaintiff’s first Motion to Compel (Dkt. No. 103) is therefore **DENIED** as premature.

Plaintiff’s Renewed Motion to Compel (Dkt. No. 173) is also **DENIED**. The record makes clear that Apple fully complied with Plaintiff’s subpoena on September 23, 2025, producing responsive records where able and otherwise confirming that Apple does not possess records responsive to certain of Plaintiff’s requests. (*See generally* Dkt. Nos. 128-1, 128-2.)

Plaintiff nonetheless takes issue with Apple’s response to her subpoena because Apple’s production purportedly “ends on August 27, 2023—almost a year before the subpoena was served—and omits critical data for the period in which Plaintiff’s iPhone experienced repeated system overrides and remote activations, including [a] September 10, 2025 incident reported directly to Apple.” (Dkt. No. 173 at 1.) However, as Apple correctly notes, Apple’s production “contained records as recent as August 23, 2025 and August 14, 2025,” and Plaintiff never requested that Apple produce records pertaining to a “September 10, 2025 incident.” (Dkt. No. 174 at 4–5; *see also* Dkt. Nos. 103-1, 174-2.)

Further, the record indicates that Apple likely does not have the information Plaintiff seeks regarding the alleged “September 10, 2025 incident.” (*See generally* Dkt. No. 128-1.) As this Court has repeatedly informed Plaintiff, it cannot compel entities to furnish information they do not possess. *See, e.g., Moore v. BPS Direct, LLC*, No. 2:17-CV-3228-RMG, 2019 WL 2912490, at *2 (D.S.C. July 8, 2019) (“It is axiomatic that a party cannot be ordered to produce documents that do not exist.”); *Jackson v. Wade*, No. 1:20-CV-114 (LMB/IDD), 2021 WL 1536578, at *5 (E.D.

EXHIBIT G

Va. Apr. 19, 2021), *appeal dismissed*, 2021 WL 5447601 (4th Cir. Nov. 22, 2021) (“[A] subpoena can only direct an individual or entity to produce materials in their ‘possession, custody, or control,’ and thus cannot compel an entity to create a new document . . . out of whole cloth.”).

Accordingly, Plaintiff’s Renewed Motion to Compel (Dkt. No. 173) is **DENIED**.

For similar reasons, Apple’s Motion for Protective Order (Dkt. No. 129) is **GRANTED**. As the Court has previously explained, Federal Rule of Civil Procedure 45 imposes stricter limitations on discovery sought from nonparties. Indeed, “[a] more demanding variant of the proportionality analysis [] applies when determining whether, under Rule 45, a subpoena issued against a nonparty ‘subjects a person to undue burden’ and must be quashed or modified.” *Virginia Dep’t of Corr. v. Jordan*, 921 F.3d 180, 189 (4th Cir. 2019) (quoting Fed. R. Civ. P. 45(d)(3)(A)(iv)). This is so because “[b]ystanders should not be drawn into the parties’ dispute without some good reason, even if they have information that falls within the scope of party discovery.” *Id.* A subpoena subjects a nonparty to undue burden if it “seeks information irrelevant to the case or that would require [the] non-party to incur excessive expenditure of time or money.” *Cook v. Howard*, 484 F. App’x 805, 812 n.7 (4th Cir. 2012).

Courts also consider the general discovery standards in Federal Rule of Civil Procedure 26 when determining the limits to impose on discovery sought from a nonparty. *Id.* at 812 (“Although Rule 45(c) sets forth additional grounds on which a subpoena against a third party may be quashed, taking into consideration facts peculiar to their status as a non-party, those factors are co-extensive with the general rules governing all discovery that are set forth in Rule 26.”); *see also Jordan*, 921 F.3d at 189 (“As under Rule 26, the ultimate question is whether the benefits of discovery to the requesting party outweigh the burdens on the recipient.”). For example, courts will allow “[a] party

EXHIBIT G

or any person from whom discovery is sought [to] move for a protective order in the court where the action is pending. . . . [and may], for good cause, issue an order to protect a party or person from annoyance, embarrassment, oppression, or undue burden and expense” by forbidding or limiting the scope of discovery. Fed. R. Civ. P. 26(c)(1).

Here, Plaintiff’s persistent filing of premature and/or frivolous discovery motions has subjected Apple to the very type of “undue burden and expense” Federal Rule of Civil Procedure 26(c)(1) seeks to curtail. Apple has submitted evidence indicating that it promptly and fully complied with the subpoena it received from Plaintiff, and that Apple’s attorneys and representatives have consistently worked with Plaintiff to resolve her qualms without involving the Court. Nonetheless, Plaintiff has taken issue with Apple’s production at every turn and has failed to reasonably resolve her issues with Apple directly. Thus, Apple has been forced to incur additional expenses by appearing before this Court to litigate issues that could have been easily resolved out of Court. Against this background, the undersigned finds that Apple is entitled to a protective order prohibiting Plaintiff from issuing additional discovery requests to Apple in this case. Apple’s Motion for Protective Order (Dkt. No. 129) is therefore **GRANTED**.

CONCLUSION

For the foregoing reasons, Plaintiff’s Motion to Compel (Dkt. No. 103) and Renewed Motion to Compel (Dkt. No. 173) are **DENIED**, and Apple’s Motion for Protective Order (Dkt. No. 129) is **GRANTED**.

IT IS SO ORDERED.



MARY GORDON BAKER
UNITED STATES MAGISTRATE JUDGE

EXHIBIT G

October 21, 2025

Charleston, South Carolina

EXHIBIT H

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF SOUTH CAROLINA
CHARLESTON DIVISION

DEBRA NELSON,	)	
	)	
Plaintiff,	)	
	)	
v.	)	
	)	
Curtiss Wright Electro Mechanical Corp.	)	C.A. No. 2:25-cv-00405-RMG-MGB
d/b/a Curtiss-Wright Steam and Air	)	
Solutions, STEPHANIE LANIER, and	)	
SHANE SABLITSKY,	)	
	)	
Defendants.	)	

**DEFENDANTS' RESPONSE TO PLAINTIFF'S OBJECTIONS TO THE MAGISTRATE
JUDGE'S ORDERS**

Defendants, by and through their undersigned counsel, submit this Response to Plaintiff's Objections to Magistrate Judge's Orders (ECF Nos. 192 & 194). For the reasons set forth below, Plaintiff's Objections have no basis in law and should be overruled.

As an initial matter, Plaintiff's objections to Magistrate Judge Baker's October 21, 2025, Order (ECF No. 194) applies relating to Plaintiff's discovery dispute with a third party, Apple, Inc. Defendants take no position on that dispute.

A. Judge Baker's October 20, 2025, Ruling is Not Clearly Erroneous or Contrary to Law.

Plaintiff's Objections to Judge Baker's October 20, 2025, Order are untimely and should be overruled on this basis alone. On October 20, 2025, Judge Baker entered an order on one of Plaintiff's pending Motions to Compel (ECF No. 105), in which she ruled, in relevant part, that Plaintiff cannot compel non-party Hunt Law LLC to respond to a subpoena because the information sought was not relevant to her claims and Plaintiff failed to demonstrate why the

EXHIBIT H

information sought could not be obtained from Defendants.¹ On November 14, 2025, approximately 25 days after the Court's Order, Plaintiff lodged her Objections. Objections to a Magistrate Judge's non-dispositive order must be made within 14 days after being served with a copy of the Order. Here, Plaintiff served her objections over ten days too late. As such, her Objections should be overruled.²

In addition, Plaintiff's Objections are facially frivolous and should be overruled on the merits. As Plaintiff correctly points out, Judge Baker's Order should be modified or set aside only if it is clearly erroneous or contrary to law. Fed. R. Civ. P. 72(a). It was not.

In fact, *enforcing Plaintiff's subpoena would be clearly erroneous*. Plaintiff seeks to subpoena all communications between Hunt Law and defense counsel because she believes that defense counsel and/or Curtiss Wright paid Plaintiff's former attorney to drop this case.³ See ECF No. 196. There is absolutely no support whatsoever for this conspiracy theory. Judge Baker correctly found that "the non-privileged communications between Bonnie Hunt and/or Hunt Law LLC and Defendants and/or Defense counsel appear to have absolutely no bearing on the claims set forth in Plaintiff's Fourth Amended Complaint." (ECF No. 192 at 6.) Rule 26 defines that scope of discovery as that relevant to "any party's claim or defense." Fed. R. Civ. P. 26(b)(1). There is no claim in this lawsuit even tangentially related to the subject matter of Plaintiff's

¹ Judge Baker's October 20 Order addressed other issues as well, but Plaintiff failed to lodge any objections to those portions of the Order. As such, those portions of the Order should stand without objection.

² To the extent Plaintiff attempts to argue that she did not receive timely notice of the October 20, 2025 Order from the Court, it is clear from subsequent filings by Plaintiff that she received the Order no later than October 27. See Plaintiff's Motion for Recusal, ECF No. 199.

³ Plaintiff's Notices of Subpoena to Bonnie Hunt and Hunt Law inaccurately state that they include Schedule A's showing the document requests. Plaintiff has repeated this on three separate occasions, so it is unclear whether these are intentionally omitted. See ECF Nos. 134, 164, 171. Defendants are only aware of the documents Plaintiff seeks through contemporaneous filings.

EXHIBIT H

subpoena to Bonnie Hunt. While Judge Cherry may have authorized Plaintiff to send subpoenas to third parties by allowing her to request the subpoenas from the Court, the Court did not in any way authorize Plaintiff's enforcement of that subpoena. Because the information requested by Plaintiff in her subpoena fell outside the scope of Rule 26, Judge Baker's Order denying Plaintiff's Motion to enforce that subpoena was not clearly erroneous – it was consistent with the scope of permissible discovery in Rule 26.

Judge Baker also rules that "Plaintiff has failed to demonstrate why she cannot obtain the requested materials from Defendants." (ECF No. 192 at 6.) In fact, on October 16, 2025, Defendants produced to Plaintiff all communications between defense counsel and Bonnie Hunt.⁴ Therefore, Plaintiff's Objections regarding this subpoena were moot when filed. As such, Plaintiff's Objections should be overruled and Judge Baker's Order affirmed.

B. Defendants' Oppose Plaintiff's Request to Have All Discovery Disputes Reviewed by the District Judge or Reassigned.

In her Objections, Plaintiff seeks to have all discovery disputes reviewed by the District Judge or reassigned to a different Magistrate Judge. She fails to cite any authority to support this request and, though Defendants are confident in any District Judge or Magistrate Judge's ability to rule on Plaintiff's discovery motions, the practical reality is that Plaintiff's request is not feasible given the volume of motions that she files. As of November 25, 2025, there have been 227 docket entries in a case that is less than a year old, including over 20 different motions, not including responses and replies, filed by Plaintiff in approximately the last two months. Having all discovery disputes reviewed by the district judge would waste judicial resources and further delay this

⁴ On October 30, the Court requested that Defendants provide Plaintiff with all communications between Defense Counsel and Bonnie Hunt or provide Plaintiff with an affidavit that such communications do not exist. *See* ECF 204. Defendants had already produced all of those communications to Plaintiff prior to that Order.

EXHIBIT H

litigation. It would additionally be prejudicial to Defendants, allowing Plaintiff a second bite at the apple because she is merely unsatisfied with prior judicial review and force Defendants to unnecessarily expend financial resources relitigating resolved discovery issues.

Likewise, Defendants oppose reassigning this case to another magistrate judge because the only basis for Plaintiff's request is that Judge Baker has ruled against her. Plaintiff stated as much in her Motion for Recusal where her chief complaint is that contested issues were not being resolved in her favor. (ECF No. 199.) Defendants are aware that Plaintiff has filed similar motions in other lawsuits, which Plaintiff had also referenced in her Motion for Recusal, stating, for example:

"This case also fits into a broader and troubling pattern. In multiple separate matters involving [an attorney and judge in a state law case], Plaintiff has encountered similar irregularities in judicial handling and denials of procedural fairness. Each of these judges demonstrated conduct that has been or will be the subject of formal judicial misconduct complaints filed with the appropriate disciplinary authorities."

ECF No. 199 §4, ¶6 (names and case information omitted for brevity). Even if this case is reassigned to a different Magistrate Judge, once Plaintiff receives a ruling that is not in her favor, she will allege bias and ask for the case to be reassigned again. Therefore, Defendants respectfully ask the Court to overrule Plaintiff's Objections in their entirety.

Respectfully submitted this 26th day of November, 2025.

s/ Joseph V. Valenza

T. Chase Samples (Fed. I.D. No. 10824)

Email: Chase.Samples@jacksonlewis.com

Joseph V. Valenza (Fed. I.D. No. 14416)

Email: Joseph.Valenza@jacksonlewis.com

JACKSON LEWIS P.C.

15 South Main Street, Suite 700

Greenville, SC 29601

Phone: 864-232-7000

ATTORNEYS FOR DEFENDANTS

EXHIBIT H

4915-7561-3052, v. 1

EXHIBIT H

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF SOUTH CAROLINA
CHARLESTON DIVISION**

DEBRA NELSON,

Plaintiff,

v.

Curtiss Wright Electro Mechanical Corp.
d/b/a Curtiss-Wright Steam and Air
Solutions,
STEPHANIE LANIER, and
SHANE SABLITSKY,

Defendants.

C.A. No. 2:25-cv-00405-RMG-MGB

CERTIFICATE OF SERVICE

The undersigned certifies that on November 26, 2025, a copy of the foregoing **DEFENDANTS' RESPONSE TO PLAINTIFF'S OBJECTIONS TO THE MAGISTRATE JUDGE'S ORDERS** has been served upon the following via email and United States Mail, postage prepaid and addressed to:

Debra Nelson

***Pro Se Plaintiff***s/ Joseph V. Valenza

Joseph V. Valenza

Dated: November 26, 2025

11/30/25, 8:50 PM

Gmail - Filed Motions for 11.6.2025

EXHIBIT I

Debra Nelson <[REDACTED]>

Filed Motions for 11.6.2025

1 message

Debra Nelson <[REDACTED]>

Thu, Nov 6, 2025 at 3:09 PM

To: "Samples, T. Chase (Greenville)" <chase.samples@jacksonlewis.com>, "Valenza, Joseph V. (Greenville)" <joseph.valenza@jacksonlewis.com>

Counsel,

See copies of motions filed with the court today 11/6/2025

2 attachments**Filed Notice of Opposition to Defense Motion to Compel.pdf**
2889K**Objections to Magistrate Judge Orders ECF 192_194.pdf**
3812K

EXHIBIT J

State of South Carolina
Office of the Secretary of State
The Honorable Mark Hammond

1205 PENDLETON STREET, SUITE 525
COLUMBIA, SC 29201

803-734-2170
sos.sc.gov



October 9, 2025

ELECTRONIC CERTIFIED MAIL
RETURN RECEIPT REQUESTED

Hunt Law, LLC
4000 Faber Place Drive, Suite 300
North Charleston, SC 29445

RE: Hunt Law, LLC, 2:25-cv-00405-DCN-MGB

Dear Madam/Sir:

In accordance with South Carolina Code § 33-44-111, we are enclosing herewith a copy of the Subpoena to Produce Documents, Information, or Objects or to Permit Inspection of Premises in a Civil Action; Schedule A to Subpoena Duces Tecum; and Corrected Notice of Appeal in the above-entitled case. Service was accepted on October 9, 2025 and a copy has been duly filed in our office as of this date. The fee of \$10.00 has been paid.

Yours very truly,

Allyson Green
South Carolina Secretary of State's Office

Enclosures

cc: Debra Nelson



EXHIBIT K



Debra Nelson <[REDACTED]>

Nelson v. Curtiss Wright Electro Mechanical Corp., et al

1 message

Debra Nelson <[REDACTED]>

Wed, Oct 15, 2025 at 9:08 PM

To: "Samples, T. Chase (Greenville)" <chase.samples@jacksonlewis.com>, "Valenza, Joseph V. (Greenville)" <joseph.valenza@jacksonlewis.com>

Subject: Response to Requests for Production Nos. 1, 3, and 21

Dear Mr. Samples and Mr. Valenza,

In response to Defendants' First Set of Requests for Production (Nos. 1, 3, and 21), the video referenced in your request has already been filed with the Court as part of the official record. It was submitted on **May 13, 2025**, as **ECF No. 40**, on a flash drive.

That video is approximately 30 minutes long and is accessible through the Court's docket and therefore does not require any further production. The video was created to document events I personally experienced and contains no slanderous or defamatory content.

Per the advice of my former attorney, **Bonnie Hunt**, I removed the video from all of my social media accounts to prevent potential misuse or misrepresentation. Since the video is already part of the court record and no other relevant videos or posts exist, there is **no basis for Defendants to access my personal social media accounts**.

Please let me know if you have any difficulty locating the video in the docket.

Sincerely,

Debra Nelson

Pro Se Plaintiff



EXHIBIT L

Debra E Nelson
Nelson, Debra Vs. Curtiss Wright Electro Mechanical Corp.

October 28, 2025

Page 1

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF SOUTH CAROLINA
CHARLESTON DIVISION

Debra Nelson,

Plaintiff,

V.

C.A. No. 2:25-cv-00405-DCN-MHC

Curtis Wright Electro Mechanical

Corp. d/b/a Curtiss-Wright Steam

and Air Solutions, Stephanie Lanier,

and Shane Sablotsky,

Defendants.

DEPOSITION: Debra E. Nelson

DATE: October 28, 2025

TIME: 10:20 a.m. EST

LOCATION: Veritext Legal Solutions

28 Bridgeside Boulevard, Suite 205

Mount Pleasant, SC

TAKEN BY: Counsel for the Plaintiff

REPORTED BY: Rosemary F. Grogan, CSR, RPR

Veritext Legal Solutions

800.743.DEPO (3376)

calendar-carolinas@veritext.com

www.veritext.com

Responses in yellow is CW Defense Counsel T. Chase Samples

Responses in teal blue are the Plaintiff Debra Nelson

EXHIBIT L

Debra E Nelson

October 28, 2025

Nelson, Debra Vs. Curtiss Wright Electro Mechanical Corp.

Page 29

1 A. Mm-hmm.

2 Q. Is that a yes?

3 A. Yeah.

4 Q. Did you have that account when you worked at
5 Curtiss-Wright?

6 A. Yes.

7 Q. Have you posted anything on that account
8 related to your employment or your claims in this
9 lawsuit?

10 A. I did post a video, but it was mostly about
11 the events that were happening surrounding, basically,
12 after I was terminated, the events that occurred after.
13 And it was more so I posted that video on my social
14 media accounts for safety reasons because I felt that
15 would keep me safe because I felt somebody was
16 potentially going to do me bodily harm.

17 Q. Why did you think that?

18 A. Because I had unknown people showing up at my
19 house. I had an unknown man standing in front of my
20 house at around 1 o'clock in the morning, just standing
21 there on the cul-de-sac not moving. I sat in my car to
22 watch to see what he was going to do and he was just
23 standing there not moving for several minutes. And I
24 said something ain't right, so I called the police.

25 Q. Okay. Did they ever arrest that man --

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calendar-carolinas@veritext.com

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Responses in yellow is CW Defense Counsel T. Chase Samples

Responses in teal blue are the Plaintiff Debra Nelson

EXHIBIT L

Debra E Nelson

October 28, 2025

Nelson, Debra Vs. Curtiss Wright Electro Mechanical Corp.

Page 32

1 A. Yes.

2 Q. Okay. Do you have any evidence to indicate
3 that anyone at Curtiss-Wright was in any way connected
4 to that cell phone?

5 A. How would I know that? I don't know who --
6 who is responsible.

7 Q. You don't have any evidence --

8 A. Not yet. Discovery is still not complete.

9 Q. Let me finish my question.
10 You don't have any evidence to connect that
11 cell phone to Curtiss-Wright?

12 A. Not at the moment.

13 Q. Okay. You said you have a TikTok account. Do
14 you have one or more?

15 A. No, I think I've just got one.

16 Q. Do you know your user name for that one?

17 A. No.

18 Q. Have you posted on TikTok anything about
19 Curtiss-Wright or your lawsuit?

20 A. I'll reiterate. I posted on all my social
21 accounts that video that detailed all the events that
22 were -- that were occurring, the stalking, the man and
23 the woman showing up at my front door, the -- me sending
24 mail to Washington, D.C. and it's been 10 days bouncing
25 back and forth between one process center in D.C. to

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Responses in teal blue are the Plaintiff Debra Nelson

EXHIBIT L

Debra E Nelson

October 28, 2025

Nelson, Debra Vs. Curtiss Wright Electro Mechanical Corp.

Page 33

1 another process center in D.C. And then after I tried
2 to contact the postal manager or whatever, then the mail
3 was finally delivered.

4 But before then, it kept on bouncing -- from
5 the tracking, it kept bouncing back and forth between
6 distribution centers and Washington, D.C. I talked
7 about that.

8 What else did I talk about? About my car
9 being hacked into. I have a video of that. Two videos
10 of that, actually. Cell phones, turning them off and
11 then they turn on by themselves.

12 Q. Have you talked about all those things in the
13 videos that you posted online?

14 A. Yes, because as long as I stayed quiet, I know
15 that prevented -- that would keep me in danger. So long
16 I said something and made it public, then the likelihood
17 of something happening to me was lessened.

18 Q. Do you still have that video?

19 A. I do, and I've already submitted it to the
20 court.

21 Q. But you have not produced a copy directly to
22 defendants in this case, correct?

23 A. It was submitted to the court and you can
24 obtain that information from the court.

25 Q. So that's a yes to my question, you have not

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Responses in teal blue are the Plaintiff Debra Nelson

EXHIBIT L

Debra E Nelson
Nelson, Debra Vs. Curtiss Wright Electro Mechanical Corp.

October 28, 2025

Page 34

1 produced it directly to defendants?

2 A. No, and I'm not going to.

3 Q. How is the video that you posted on social
4 media related to Curtiss-Wright in any way?

5 A. I will say this again. I said the video
6 detailed events that were happening to me. The only
7 reference I made in that video about Curtiss-Wright is
8 that I worked that company. I was bullied by a male
9 engineer, which is fact, it is documented, and that I
10 was terminated, which is also facts and documented.

11 So that was the only reference made by me to
12 Curtiss-Wright.

13 Q. You said you were bullied by a male engineer.
14 Who are you referring to?

15 A. Brian Foley.

16 Q. I'm going to come back to Brian later on and
17 ask you some questions about that.

18 Anything else that you've you posted or that
19 you said in that video that's related to your employment
20 at Curtiss-Wright?

21 A. That's the only thing about Curtiss-Wright I
22 said.

23 Q. Okay. You also said you had two videos of
24 your car. Do you still have those videos?

25 A. I have all my videos.

EXHIBIT L

Debra E Nelson
Nelson, Debra Vs. Curtiss Wright Electro Mechanical Corp.

October 28, 2025

Page 36

1 Q. That happened in Arizona; is that right?

2 A. It happened in Arizona.

3 Q. Okay. So the two car video, you said you
4 still have those?

5 A. Yes.

6 Q. Have you produced those in this case?

7 A. It's with the court. Every video pertaining
8 to me be surveilled, my devices being hacked were all
9 submitted to the court.

10 Q. Just to clarify, you have not provided them
11 to --

12 A. No.

13 Q. -- Defendants in this case?

14 Do you intend to do so?

15 A. No. You can get it from the court.

16 Q. Have you made any other videos related to your
17 claims in this case?

18 A. Yes.

19 Q. What other videos did you make?

20 A. Everything. I journal everything. I document
21 everything in case somebody tries to kill me other
22 people have those videos.

23 Q. What other videos have you made related to
24 this case?

25 A. Everything, like the -- the police officer

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Responses in teal blue are the Plaintiff Debra Nelson

EXHIBIT L

Debra E Nelson

October 28, 2025

Nelson, Debra Vs. Curtiss Wright Electro Mechanical Corp.

Page 37

1 showing up at my house, the -- the videos of my phone
2 not working. I'm recording videos on my iPhone and
3 there's no sound, so -- so there's several videos. So
4 they're blocking me from trying to --

5 I post on social media sometimes and so if I
6 post a video -- and it can be about anything, they would
7 just disable my phone to where the videos have no sound.
8 My iPhone and then if I wanted to really post a video, I
9 would use my Android and most times that would work.

10 Q. So the videos that you've taken related to
11 Curtiss-Wright, have you given all those videos to the
12 court?

13 A. Yes. Anything that pertains to me being
14 surveyed [sic] me, me being followed, devices -- strange
15 devices appearing at my house, those were all given to
16 the court. And I also maintain copies in other places.
17 Other people have copies as well.

18 Q. You haven't given any of those videos to
19 defendants during discovery in this case, have you?

20 A. No, the -- I gave it -- I gave the court a
21 flash drive because there was so much videos and
22 documentation. Yeah, it would have been burdensome.

23 Q. Do you have any videos of your coworkers at
24 Curtiss-Wright?

25 A. Coworkers, no.

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Responses in yellow is CW Defense Counsel T. Chase Samples

Responses in teal blue are the Plaintiff Debra Nelson

EXHIBIT L

Debra E Nelson
Nelson, Debra Vs. Curtiss Wright Electro Mechanical Corp.

October 28, 2025

Page 39

1 A. That they're racist.

2 Q. Anything else?

3 A. That they bullied me.

4 Q. Anything else?

5 A. That's it.

6 Q. Do you still have those videos?

7 A. There was no videos. Those were comments but
8 they -- they were deleted.

9 Q. Did you delete those before or after you filed
10 this lawsuit?

11 A. I don't know when she advised me. It could
12 have been before. I'm not sure, but she told me to take
13 the video down and, you know, all that kind of stuff.

14 Q. But you had at least reached out to Bonnie
15 Hunt about bringing this lawsuit at the time that --

16 A. She was my attorney. I paid this lady to
17 represent me, which she ended up trying to sabotage me,
18 but yes, she was my attorney.

19 Q. Okay. But going back to my question, though,
20 you had retained her for the purpose of filing a lawsuit
21 against Curtiss-Wright at the time that she told you to
22 delete those videos?

23 A. Yes.

24 Q. And you had already filed a charge -- or
25 multiple charges with the EEOC related to your

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Responses in yellow is CW Defense Counsel T. Chase Samples

Responses in teal blue are the Plaintiff Debra Nelson

EXHIBIT M**UNITED STATES DISTRICT COURT**

for the

District of South Carolina



DEBRA NELSON

Plaintiff

v.

Curtiss Wright Electro Mechanical Corp. d/b/a
Curtiss-Wright Steam and Air Solutions, STEPHANIE
LANIER and SHANE SABLITSKY*Defendant*

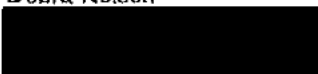
Civil Action No. 2:25-cv-00405-DCN-MGB

**SUBPOENA TO PRODUCE DOCUMENTS, INFORMATION, OR OBJECTS
OR TO PERMIT INSPECTION OF PREMISES IN A CIVIL ACTION**

To:

Bonnie Travaglio Hunt, Esq.
Hunt Law LLC*(Name of person to whom this subpoena is directed)*

Production: YOU ARE COMMANDED to produce at the time, date, and place set forth below the following documents, electronically stored information, or objects, and to permit inspection, copying, testing, or sampling of the material: Non-privileged communications and financial records

Place: Debra Nelson 	Date and Time: 10/30/2025 5:00 p.m. EST
---	---

Inspection of Premises: YOU ARE COMMANDED to permit entry onto the designated premises, land, or other property possessed or controlled by you at the time, date, and location set forth below, so that the requesting party may inspect, measure, survey, photograph, test, or sample the property or any designated object or operation on it.

Place:	Date and Time:
--------	----------------

The following provisions of Fed. R. Civ. P. 45 are attached – Rule 45(c), relating to the place of compliance; Rule 45(d), relating to your protection as a person subject to a subpoena; and Rule 45(e) and (g), relating to your duty to respond to this subpoena and the potential consequences of not doing so.

Date: October 02, 2025

CLERK OF COURT



OR

*Signature of Clerk or Deputy Clerk**Attorney's signature*The name, address, e-mail address, and telephone number of the attorney representing *(name of party)*

, who issues or requests this subpoena, are:
Debra Nelson, Pro Se, 

Notice to the person who issues or requests this subpoena

If this subpoena commands the production of documents, electronically stored information, or tangible things or the inspection of premises before trial, a notice and a copy of the subpoena must be served on each party in this case before it is served on the person to whom it is directed. Fed. R. Civ. P. 45(a)(4).

11/9/25, 5:19 PM

Gmail - Former Employees



Debra Nelson <nelsondebra62@gmail.com>

Former Employees

12 messages

Debra Nelson <[REDACTED]> Sun, Oct 26, 2025 at 5:20 PM
To: "Samples, T. Chase (Greenville)" <chase.samples@jacksonlewis.com>, "Valenza, Joseph V. (Greenville)" <joseph.valenza@jacksonlewis.com>

Counsel,

I need to confirm the addresses for former employees Antonio Coleman and Brian Fogarty

Respectfully,
Debra Nelson

Samples, T. Chase (Greenville) <Chase.Samples@jacksonlewis.com> Wed, Oct 29, 2025 at 9:51 AM
To: Debra Nelson <[REDACTED]>
Cc: "Valenza, Joseph V. (Greenville)" <Joseph.Valenza@jacksonlewis.com>

Ms. Nelson:

Antonio Coleman's last known address is:

Antonio Coleman
[REDACTED]

Curtiss Wright heard from Brian Fogarty this week. He indicated that he had a certified package from you at the post office (and so you appear to have his correct address). Unfortunately, he just had back surgery and is unable to pick up the package. (The post office refused to let his wife sign for it.)

To the extent you are seeking to take his deposition, he indicated that he is bed ridden and on strong opioids for the next few weeks.

Please also know that you have only two remaining depositions before you exceed the ten deposition limit. We owe you a response on David McKeown's availability and will be in touch later this week with that information.

11/9/25, 5:19 PM

EXHIBIT N

Gmail - Former Employees



T. Chase Samples
Attorney at Law

Jackson Lewis P.C.
15 South Main Street
Suite 700
Greenville, SC 29601
Direct: (864) 672-8034 | Main: (864) 232-7000
Chase.Samples@jacksonlewis.com | www.jacksonlewis.com

[Quoted text hidden]

Debra Nelson <[REDACTED]>
To: "Samples, T. Chase (Greenville)" <Chase.Samples@jacksonlewis.com>
Cc: "Valenza, Joseph V. (Greenville)" <Joseph.Valenza@jacksonlewis.com>

Wed, Oct 29, 2025 at 11:23 AM

I will require a doctors note from Brian stating this. Otherwise I will reschedule him for 11/2/25 and I will expect him to be there

[Quoted text hidden]

Samples, T. Chase (Greenville) <Chase.Samples@jacksonlewis.com>
To: Debra Nelson <[REDACTED]>
Cc: "Valenza, Joseph V. (Greenville)" <Joseph.Valenza@jacksonlewis.com>

Fri, Oct 31, 2025 at 11:28 AM

Ms. Nelson:

David Mckeough is available next Monday or Tuesday for his deposition, anytime prior to 3:00 p.m. I suggest we do it via Teams to save time and costs for all parties. Please let us know which day and time works best for you.

David's deposition will be the ninth deposition you have taken, leaving you only one more.

Regarding your email below, related to Brian Fogarty, since he is a former employee, we do not have control over Mr. Fogarty, and so you'll have to subpoena his attendance. But, as we've indicated, he advised Curtiss Wright that he recently had back surgery and is unavailable in the short term to appear for his deposition.

[Quoted text hidden]

Debra Nelson <[REDACTED]>
To: "Samples, T. Chase (Greenville)" <chase.samples@jacksonlewis.com>, "Valenza, Joseph V. (Greenville)" <joseph.valenza@jacksonlewis.com>

Fri, Oct 31, 2025 at 12:32 PM

My 2 witnesses until I get approval from the court will be Jeff Womack and Antonio Coleman

[Quoted text hidden]

Samples, T. Chase (Greenville) <Chase.Samples@jacksonlewis.com>
To: Debra Nelson <[REDACTED]>
Cc: "Valenza, Joseph V. (Greenville)" <Joseph.Valenza@jacksonlewis.com>

Fri, Oct 31, 2025 at 2:49 PM

Thank you, Ms. Nelson. What day(s) are you looking at for the Antonio Coleman deposition next week? He is outside of our control and so you'll have to subpoena him, if you haven't already.

11/9/25, 5:19 PM

EXHIBIT N

Gmail - Former Employees

We'll report back on Jeff Womack's return to work status once we know more next week.



T. Chase Samples
Attorney at Law

Jackson Lewis P.C.
15 South Main Street
Suite 700
Greenville, SC 29601
Direct: (864) 672-8034 | Main: (864) 232-7000
Chase.Samples@jacksonlewis.com | www.jacksonlewis.com

From: Debra Nelson <[REDACTED]>
Sent: Friday, October 31, 2025 12:32 PM
To: Samples, T. Chase (Greenville) <Chase.Samples@jacksonlewis.com>; Valenza, Joseph V. (Greenville) <Joseph.Valenza@jacksonlewis.com>
Subject: Re: Former Employees

[Quoted text hidden]

Debra Nelson <[REDACTED]>
To: "Samples, T. Chase (Greenville)" <Chase.Samples@jacksonlewis.com>

Fri, Oct 31, 2025 at 3:14 PM

You should already know Jeff's status. I will let you know when I have a date confirmed.
[Quoted text hidden]

Debra Nelson <[REDACTED]>
To: "Samples, T. Chase (Greenville)" <Chase.Samples@jacksonlewis.com>

Sat, Nov 1, 2025 at 11:53 AM

At the moment until this case is reviewed I will only focus on Jeff Womack and Antonio Coleman.

I reviewed the discovery docs that you sent and it's a whole lot of nothing. The documents that I requested you have not produced. You are the professionals here so you know this is obstruction of justice. I will be filing something to preserve my rights and have it on the record until there is a new Judge assignment.
[Quoted text hidden]

Debra Nelson <[REDACTED]>
To: "Samples, T. Chase (Greenville)" <Chase.Samples@jacksonlewis.com>

Sun, Nov 2, 2025 at 6:44 AM

Attached is the Notice of Deposition scheduled for November 5, 2025 from 12-2 p.m.
[Quoted text hidden]

 **Signed Notice of Deposition 2025_11_5.pdf**
756K

Samples, T. Chase (Greenville) <Chase.Samples@jacksonlewis.com>
To: Debra Nelson <[REDACTED]>
Cc: "Valenza, Joseph V. (Greenville)" <Joseph.Valenza@jacksonlewis.com>

Tue, Nov 4, 2025 at 9:53 AM

Ms. Nelson:

11/9/25, 5:19 PM

EXHIBIT N

Gmail - Former Employees

Jeff Womack did not return to work yesterday or today, and he is advising the company that he has another doctor's appointment soon, and that his return to work date is uncertain.

We will plan to substitute in Dave McKeough. Can we plan to do his deposition through Zoom or Teams? Also, do you anticipate also deposing Antonio Coleman tomorrow?

Thanks.

[Quoted text hidden]

Debra Nelson <[REDACTED]>
To: "Samples, T. Chase (Greenville)" <Chase.Samples@jacksonlewis.com>
Cc: "Valenza, Joseph V. (Greenville)" <Joseph.Valenza@jacksonlewis.com>

Tue, Nov 4, 2025 at 1:47 PM

No I have it scheduled to be in person. I will be demanding a doctors note from Jeff because I believe defense is operating in bad faith

[Quoted text hidden]

Debra Nelson <[REDACTED]>
To: "Samples, T. Chase (Greenville)" <Chase.Samples@jacksonlewis.com>
Cc: "Valenza, Joseph V. (Greenville)" <Joseph.Valenza@jacksonlewis.com>

Wed, Nov 5, 2025 at 12:30 PM

Counsel,

In light of what was discussed in the deposition of David McKeough on November 5, 2025 starting at 12:00 p.m. I will need a copy of Patrick Ingram's certification test for Final Inspection (Inspection of Nuclear)

[Quoted text hidden]

11/9/25, 4:59 PM

EXHIBIT N-1

Gmail - Automatic reply: Former Employees



Debra Nelson <[REDACTED]>

Automatic reply: Former Employees

8 messages

Valenza, Joseph V. (Greenville) <Joseph.Valenza@jacksonlewis.com>

Wed, Oct 29, 2025 at 11:24 AM

To: Debra Nelson <[REDACTED]>

I am out of the office in depositions through Thursday, October 30th. If you need assistance prior to my return, please contact my assistant, Marie Wilson, Marie.wilson@jacksonlewis.com.

Samples, T. Chase (Greenville) <Chase.Samples@jacksonlewis.com>

Wed, Nov 5, 2025 at 12:31 PM

To: Debra Nelson <[REDACTED]>

I am out of the office traveling and in meetings on Wednesday and Thursday and so my response to your email may be delayed. If you need immediate assistance, then please contact my assistant, Paula Davis, paula.davis@jacksonlewis.com.

Valenza, Joseph V. (Greenville) <Joseph.Valenza@jacksonlewis.com>

Wed, Nov 5, 2025 at 12:31 PM

To: Debra Nelson <[REDACTED]>

I am out of the office in depositions through Thursday, November 6th. If you need assistance prior to my return, please contact my assistant, Marie Wilson, Marie.wilson@jacksonlewis.com.

Debra Nelson <[REDACTED]>

Wed, Nov 5, 2025 at 1:54 PM

To: "Valenza, Joseph V. (Greenville)" <Joseph.Valenza@jacksonlewis.com>

I will need Antonio Coleman's badge times for July 10-14, 2023
[Quoted text hidden]

Debra Nelson <[REDACTED]>

Wed, Nov 5, 2025 at 1:58 PM

To: "Valenza, Joseph V. (Greenville)" <Joseph.Valenza@jacksonlewis.com>

I will need Patrick Ingram's pay record for 2022-2023
[Quoted text hidden]

Debra Nelson <[REDACTED]>

Wed, Nov 5, 2025 at 10:48 PM

To: "Valenza, Joseph V. (Greenville)" <Joseph.Valenza@jacksonlewis.com>

Since you have contacted Brian Fogarty and he has not participated in depositions he needs to return my witness fee ASAP. I expect it back within 7 days.
[Quoted text hidden]

Valenza, Joseph V. (Greenville) <Joseph.Valenza@jacksonlewis.com>

Thu, Nov 6, 2025 at 2:20 PM

To: Debra Nelson <[REDACTED]>

Cc: "Samples, T. Chase (Greenville)" <Chase.Samples@jacksonlewis.com>

Ms. Nelson,

We've let Brian Fogarty know that he is to mail the witness fee back to you. Other than telling him this, we will not be otherwise be involved in interactions with third parties that you have subpoenaed.

11/9/25, 4:59 PM

EXHIBIT N-1

Gmail - Automatic reply: Former Employees

[Quoted text hidden]

Debra Nelson

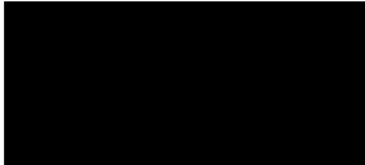
Thu, Nov 6, 2025 at 3:11 PM

To: "Valenza, Joseph V. (Greenville)" <Joseph.Valenza@jacksonlewis.com>

No problem I am sending him a demand letter today for refund of witness fees and mailing costs

[Quoted text hidden]

Plaintiff, Pro Se



CERTIFICATE OF SERVICE

I hereby certify that on December 2, 2025, I served a true and correct copy of the foregoing **Plaintiff's Judicial Recusal Motion** by email addressed to:

T. Chase Samples, Esq.
chase.samples@jacksonlewis.com
Joseph V. Valenza, Esq.
joseph.valenza@jacksonlewis.com
Jackson Lewis P.C.

Debra Nelson
Pro Se Plaintiff

EXHIBIT LIST — JUDICIAL RECUSAL MOTION

EXHIBIT A — Judge Gergel's November 24, 2025 Order

Shows the Court referenced Plaintiff's Objections at a time when those filings did not appear on Plaintiff's public docket; demonstrates unequal access and selective judicial reliance on concealed filings.

EXHIBIT B — Plaintiff's November 6, 2025 Filing (Stamped Copy)

Stamped "received" by the Clerk on November 6, 2025; proves Plaintiff timely filed her Objections and contradicts any claim of untimeliness or failure to file.

EXHIBIT C — Plaintiff's Notice of Undocketed Filing (ECF 218)

Filed November 14, 2025, informing the Court that the November 6 filing was missing from the docket; the attachment containing the Objections does not appear on the public docket; confirms Plaintiff alerted the Court to the missing entry and no corrective action was taken.

EXHIBIT D — Plaintiff's November 14, 2025 Filing (ECF 219)

The November 6 filing internally re-entered as ECF 219; demonstrates that the Court possessed and circulated the filing internally even when it was invisible to Plaintiff; supports the timeline establishing delayed access and selective docket listing.

EXHIBIT E — Apple's November 25, 2025 Motion for Extension of Time (ECF 226)

Confirms Apple received and reviewed Plaintiff's Objections (ECF 219) before Plaintiff had access; shows the Court circulated Plaintiff's filings to a third party while they were hidden from Plaintiff.

EXHIBIT F — Judge Baker’s Order Reversing Judge Cherry’s Authorization of the Hunt Law Subpoena

Demonstrates Judge Baker reversed a prior judicial finding without reviewing the flash-drive evidence or considering Judge Cherry’s underlying factual findings.

EXHIBIT G — Judge Baker’s Apple Discovery Order

Shows reliance on Defense counsel’s false statements and refusal to review Plaintiff’s evidence; further illustrates the Court’s pattern of accepting defense narratives while disregarding Plaintiff’s filings.

EXHIBIT H — Defendants’ November 26, 2025 Response to Plaintiff’s Objection (ECF 229)

Evidence that Defendants received and responded to Plaintiff’s Objections at a time when the document was not available on Plaintiff’s docket; proves unequal access and selective docket circulation.

EXHIBIT I — Plaintiff’s Email to Defense on November 6, 2025 Serving Filed Documents

Shows Plaintiff served her filings timely and directly on Defense; contradicts Defense’s claims regarding service and timeliness.

EXHIBIT J — Proof of Delivery of Hunt Law Subpoena Packet (Including Schedule A) to the South Carolina Secretary of State

Contradicts Defense’s false claim that Schedule A was not included; demonstrates that the Court accepted Defense’s misrepresentation.

EXHIBIT K — Emails Showing Plaintiff Told Defense Where to Locate the Video on the Flash Drive

Contradicts Defense counsel’s false representation that Plaintiff “refused” to produce the video; shows Defense had knowledge and access long before the discovery dispute.

EXHIBIT L — Excerpts From the October 28, 2025 Deposition Transcript

Shows Defense counsel acknowledged the video, questioned Plaintiff about it, and thus knew Plaintiff had not withheld it.

EXHIBIT M — Judge Cherry’s Signed Authorization of the Hunt Law Subpoena

Shows original judicial approval before Judge Baker reversed it without reviewing the evidence or reconciling factual findings; demonstrates arbitrary reversal.

EXHIBIT N - Defense Emails Showing Ex Parte Contact and Influence Over Plaintiff’s Comparator Witness Brian Fogarty

Email from Defense counsel asserting that Brian Fogarty was “bed-ridden,” despite no objection from the witness, no supporting documentation, and Defense’s improper interposition between Plaintiff and her subpoenaed Rule 45 witness.